Camden Development Control Plan 2019



camden council

General Land Use Controls

2

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GENERAL LAND USE CONTROLS

2.1 Earthworks

Background

This section seeks to ensure that site planning for any proposed development takes into account the topography, geology, the soils of the site and surrounding land. It also aims to minimise disturbance to existing landforms, costly earthworks and to protect existing and proposed development from becoming unstable.

Objectives

a. To allow for the construction of retaining walls on sloping land at the subdivision works stage of a development;

b. Minimise cut and fill through site sensitive subdivision, road layout, infrastructure and building design;

c. Minimise additional earthworks of lots during the construction phase;

d. Ensure land forming does not increase the potential for the inundation of water on any other land during the full range of flood events; and

e. Protect and enhance the aesthetic quality and amenity of the area by controlling the form, bulk and scale of land forming operations to appropriate levels.

Controls

General

1. Subdivision and building work should be designed to respond to the natural topography of the site wherever possible, minimising the extent of cut and fill (e.g. for steep land houses will need to be of a 'split level' design or an appropriate alternative and economical solution).
2. Subdivision and building work must be designed to ensure minimal cut and fill is required for its construction phase.

Retaining Walls and Engineering works During Subdivision

a. All retaining walls are to be of masonry construction (or the like).
b. All retaining walls proposed are to be identified in the development application.
c. The maximum height of a single retaining wall is 1 metre. A variation to the maximum height may be considered if in Council's opinion, supporting information adequately demonstrates that the development will not have adverse impacts on adjoining properties and overall local amenity.

d. Where terraced retaining walls are proposed the minimum distance between each step is 1 metre.
e. Retaining walls may be built on the boundary provided that a section 88B instrument is created on the affected lots to support the walls. Retaining walls are to be designed and constructed to allow for installation of boundary fencing without impact on the structural soundness of the retaining wall and its footings.
f. Where retaining walls are not on the boundary the retaining wall and associated infrastructure are to be wholly contained within the allotment.
g. Retaining walls that front a public place are to be finished with anti-graffiti coating.

Steep/Unstable Land

1. Development on land having a natural gradient of 1:6.7 (15%) or greater must not be approved unless a geotechnical study, including guidelines for structural and engineering works on the land, has been considered by Council.

Note: Development on sites with a natural gradient of less than 15% may also require a geotechnical assessment depending upon site characteristics.

Use of Virgin Excavated Natural Material (VENM)

h. All land forming operations should involve the use of clean fill (also known as Virgin Excavated Natural Material or 'VENM'). The VENM must also meet the same salinity characteristics of the receiving land. Council may consider alternatives to VENM on merit.

Further Information:

Schedule 3 of Environmental Planning and Assessment Regulation (Waste management facility or works)

Council's Engineering Design Specifications

Protection of the Environment Operations Act

2.2 Salinity Management

Background

Some areas in the Camden LGA are affected by levels of salinity that are high enough to damage buildings and service infrastructure. Salinity can also reduce water quality, threaten fauna and result in the degradation of vegetation and soils, including the loss of productive agricultural land.

This section seeks to ensure that consideration is given to the impact of new development on salinity processes, as well as the impact of salinity on new development.

Objectives

a. Minimise the damage caused to property and vegetation by existing saline soils, or processes that may create saline soils;

b. Ensure development will not significantly increase the salt load in existing soils and watercourses;

c. Prevent degradation of the existing soil and groundwater environment. For saline and sodic soils, minimise erosion and sediment loss; and

d. Ensure concrete slabs, brickwork/masonry products, roads, above ground/underground infrastructure is appropriate for the saline conditions of the site.

Controls

1. Groundwater recharge is to be minimised by:

    a. directing runoff from paved areas (roads, car parks, domestic paving etc) into lined stormwater drains rather than along grassed channels.

    b. lining of ponds and water sensitive urban design water bodies to avoid groundwater recharge.

    c. encouraging on site detention of roof runoff and use of low water demanding plants.

    d. encouraging tree planting, especially adjacent to watercourses.

2. For road works within areas identified as a salinity hazard:

    a. disturbance of subsoil should be minimised.

    b. engineering designs incorporating considerations of salinity impacts are required.

    c. subsoil drainage is to be installed along both sides of all roads.

    d. roads should run along or perpendicular to the contours as much as possible.

    e. alternative footpath treatments will be considered if the proposal will reduce the need for watering.

3. All development, where saline and sodic soils are identified, must incorporate soil conservation measures to minimise soil erosion and siltation during construction and following completion of development. Soil and Water Management Plans, prepared in accordance with *Managing Urban Stormwater – Soils and Construction* are to be submitted with each subdivision DA.

4. All sediment and erosion controls are to be installed prior to the commencement of any works and maintained throughout the course of construction until disturbed areas have been revegetated/ established. Certification is required to be submitted to Council prior to commencement of construction.

5. Salinity assessment of soil and ground water must be undertaken and submitted to Council with the development application for subdivision. Investigations and sampling for salinity should be conducted in accordance with the requirements of the Heritage (Department of Premier and Cabinet) booklet *Site Investigations for Urban Salinity*.

Note: A salinity assessment may be requested for development applications on land that does not have a salinity management plan restriction on title.

6. Where salinity is identified on the site and a salinity report is prepared the report must also contain a Salinity Management Plan having regard to the following issues and construction requirements from Australian Standards:

    a. What impact will the development have on existing salinity levels in the soil and ground water,

    b. What impact will salinity have on the type of construction proposed which may include the method of construction, water treatment devices, etc,

    c. AS 2159: Piling Design and Installation,

    d. AS 3600 Supp1: Concrete structures,

    e. AS 3700: Masonry Structures,

    f. AS 2870: Residential Slabs and Footings,

    g. any other relevant standard or provision referred to for salinity under the BCA, and

    h. Council's Engineering Design Specifications.

    In the absence of a salinity management plan, all works proposed on the land must be designed to achieve the requirements of Council's current Engineering Design Specification.

7. Where a development site is considered a salinity hazard:

    a. Cut and fill must be minimised.

    b. Subsoil drainage should be installed along both sides of roads.

    c. Upgrade from Council's standard stormwater requirements to suit the saline environment.

    d. Building works are to be in accordance with Councils current Engineering Design Specification, or in accordance with a salinity assessment which demonstrates an acceptable solution to manage salinity impact on building works.

e. Reference should also be made to the WSROC Salinity Code of Practice (as amended).

8. For service installation within areas identified as a salinity hazard, the following must occur:

   a. Ensure that no leakage occurs from water, sewer and stormwater pipes.

   b. Services should be joint trenched where possible.

   c. Where services cross roads, conduit at least should be laid at the time of the road construction.

   d. Transverse service connections (across roads) must be laid in conduits placed at the time of road construction if the service is not laid out at that time.

   e. Water supply pipes must be copper or a non metal acceptable to Sydney Water.

   f. Sewer pipes must be unplasticised Poly Vinyl Chloride (PVC) or other material acceptable to Sydney Water.

   g. The use of recycled waste water for the watering of domestic gardens should be minimised and in some cases will not be permitted.

9. For public / private infrastructure, including but not limited to parks, roads, stormwater systems and utility installations, in the absence of a salinity report, all works proposed must be designed to achieve the requirements of Council's current Engineering Design Specification.

2.3 Water Management

Background

Council's Engineering Specifications contains the controls relating to detention, drainage and water sensitive urban design. The controls in the Engineering Specifications need to be met to ensure that competing needs are balanced and water use is sustainable.

Objectives

a. Ensure compliance with Council's Engineering Specifications.
b. Ensure appropriate measures are implemented to manage maintenance requirements.
c. Adopt an integrated approach that takes into account all aspects of the water cycle in determining impacts and enhancing water resources.
d. Promote sustainable practices in relation to the use of water resources for human activities.
e. Minimise water consumption for human uses by using best-practice site planning, design and water efficient appliances.
f. Address water resources in terms of the entire water catchment.
g. Protect water catchments and environmental systems from development pressures and potential pollution sources.
h. Protect and enhance natural watercourses, riparian corridors and wetlands.
i. Integrate water management with stormwater, drainage, and flood conveyance requirements.
j. Ensure water quality controls are integrated with parks, conservation areas and green spaces to ensure high quality environmental outcomes are achieved.
k. Minimise urban run-off and incorporate best practice Water Sensitive Urban Design to ensure there is no adverse impact on water quality discharging from the site or to natural streams.

Controls

1. All development must demonstrate compliance with the relevant provisions of Council's Engineering Specifications including requirements for detention, drainage and water sensitive urban design.

Further Information

Further information on stormwater sustainable design considerations can be obtained from *www.wsud.org/tools-resourses/*

2.4 Trees and Vegetation

Background

The purpose of this chapter is to manage the removal of tree/s and vegetation in accordance with the *State Environmental Planning Policy (Biodiversity and Conservation) 2021*. This SEPP regulates clearing that is not linked to development requiring consent. Clearing that is ancillary to development requiring consent will be assessed as part of the development assessment process and may require further assessment and approval under the Biodiversity Conservation Act 2016.

Where a tree or other vegetation is identified within this Chapter, a person must not clear vegetation without an approval granted by Council.

To gain approval for the removal of vegetation through this DCP, the following must be considered.

Definition of a Tree under this DCP is prescribed as being any tree, sapling or shrub which meets or exceeds one of the following;

- is 3 metres or more in height;
- has a circumference of 300mm (100mm diameter) or more at a height of 1 metre above natural ground surface; or
- has a branch span of 3 metres or more

Definition of Vegetation under this DCP is prescribed as being any native vegetation including any of the following types of plants:

- trees (including any sapling or shrub or any scrub),
- understorey plants,
- groundcover (being any type of herbaceous vegetation),
- plants occurring in a wetland.

Objectives

a. Protect trees and vegetation that contribute to Camden's Urban and Peri-urban Forest;

b. Provide criteria for permitting removal and appropriate ongoing management of prescribed trees and vegetation;

c. Establish exemptions that may apply under certain circumstances;

d. Ensure stakeholders are notified of proposals involving tree removal where there is likely impact on local amenity; and

e. Ensure where appropriate, tree removals are offset by equivalent planting so that over time there is not net loss of Camden's vegetation.

Controls

1. A person must not cut down, fell, uproot, kill, poison, ringbark, burn or otherwise destroy a tree or vegetation without approval from Council authorising such works.

   This control extends to a public authority except in relation to the pruning of a tree growing on, overhanging or encroaching onto land owned by Council or which is under its care, control and management.

Note: Additional assessment requirements may apply where the application involves the removal of threatened species or their habitat.

Where native vegetation clearing exceeds the Biodiversity Offset Scheme (BOS) Threshold Triggers or is an Area of Biodiversity Value (see the Biodiversity Values Map), approval is required from Native Vegetation Panel.

2. If the Council receives an application to remove a tree, it must notify adjoining land owners in accordance with Part 1 of this DCP if, in Council's opinion, it may significantly impact on local amenity.

3. This DCP does not apply to or in respect of:

   a. routine pruning of trees or shrubs that form a continuous hedge;

   b. a tree that is confirmed dead by a qualified arborist, provided that the tree does not contain hollows or habitat resources;

   c. a tree that harbours fruit fly;

   d. Any tree identified as a noxious weed (or similar) and includes the following trees:

      i. Privet (*Ligustrum sp.*);

      ii. African Olive (*Olea africana*);

      iii. Honey Locust (*Gleditsia triacanthos*);

      iv. Cocos Palm (*Syagrus rhomanzofianum*);

      v. Chínese Celtis *(Celtis sinensis)*

   e. the destruction or removal of a tree, within 0.5 metre of the boundary between land owned or occupied by different persons, for the purpose of enabling a survey to be carried out along that boundary by a registered surveyor; and

   f. Minor pruning of branches no greater than 50mm diameter provided that:

      i. pruning is undertaken in a way that does not impact on plant health; and

      ii. if the tree is located on a neighbouring property, the permission of the owner has been sought prior to pruning work.

4. Council must not grant an approval unless it has taken into consideration:

   a. the aesthetic, botanical, ecological, cultural and heritage importance of the tree/s or vegetation (refer to the Heritage Provisions within this DCP for more information).

   b. whether the tree presents or is likely to present a health or safety hazard to persons.

   c. where action is required to restrain or prevent damage to property.

   d. the extent to which the tree prevents solar access.

   e. whether the tree obstructs is likely to obstruct accessways, footpaths, roads, utility services, drainage lines or the like or would otherwise cause a nuisance to, or endanger the movement of, persons or their vehicles.

   f. the impact of the action or work on the appearance, health or stability of the tree and the general amenity of the surrounding area.

   g. in the case of an application for approval to remove a tree:

      i. whether the pruning of the tree would be a more practical and desirable alternative.

      ii. whether a replacement tree or trees and of a certain type should be planted.

   h. Suitability of the site, matters could include slope, waterfront land, soil instability etc.

   i. to previous approvals that may contribute to cumulative impact

5. If an approval is granted for the removal of a tree or vegetation, up to four (4) replacement trees are required to be planted for every tree removed. This control does not apply to a tree or other vegetation, where Council is satisfied, is dying or dead, is not required as the habitat of native fauna and/or is a risk to human life or property.

6. Approval cannot be issued under this DCP for the removal of a tree or other vegetation:

   a. that is, or forms part of a heritage item or that is within a heritage conservation area, or

   b. that is, or forms part of an Aboriginal object or that is within an Aboriginal place of heritage significance,

unless the Council is satisfied that the proposed activity:

   c. is of a minor nature or is for the maintenance of the heritage item, Aboriginal object, Aboriginal place of heritage significance or heritage conservation area, and

   d. would not adversely affect the heritage significance of the heritage item, Aboriginal object, Aboriginal place of heritage significance or heritage conservation area.

Note: Any removal of Exotic Trees or Weeds that do not require approval must be carried out as per the “Guidelines for the clearing of Exotic Tress and Dead Native Trees”.

Further Informaiton:

- Tree Management Policy
- Local Biodiversity Strategy
- Australian Standard (AS4373-2007) Pruning of Amenity trees
- Biodiversity Values Map
- Biodiversity Offset Scheme (BOS) Threshold
- Guidelines for the Clearing of Exotic Trees and Dead Native Trees

2.5 Environmentally Sensitive Land

Background

Council has identified areas of land within the Camden LGA as being environmentally sensitive. Land may be considered environmentally sensitive for a variety of reasons, including the presence of endemic and protected ecological communities or populations, its location as a link between larger bushland remnants, or its location adjacent to watercourses or other significant natural features. The Environmentally Sensitive Land map on Council's website illustrates the likely location of environmentally sensitive land within Camden LGA. Additional areas of environmentally sensitive land may exist and may not necessarily be shown on the map.

Objectives

a. Protect, manage, enhance and restore as much environmentally sensitive land as possible;

b. Protect and enhance native vegetation for its aesthetic, cultural and heritage values and to retain the unique visual identity of the Camden landscape;

c. Maintain and enhance ecological processes necessary for the continued protection of environmentally sensitive land as well as encourage the recovery of threatened species, communities or populations and their habitats;

d. Ensure that all new development considers and maximises the protection of existing natural features at the site planning, design, development, construction and operation phases of the development; and

e. Provide limited flexibility to achieve conservation outcomes through vegetation / habitat offsets.

Controls

A development application lodged for land shown on the Environmentally Sensitive Land Map as being affected by any of the categories identified in the legend must be accompanied by information that adequately addresses the following matters:

1. Identification of potential adverse impacts of the proposed development on any of the following:

    a. an endemic native vegetation community,

    b. the existing habitat and potential habitat of any threatened species, populations or endangered ecological communities,

    c. a regionally significant species of plant, animal or habitat;

    d. a habitat corridor,

    e. a wetland, and

    f. the biodiversity values within a reserve, including a road reserve or a stock route.

2. If the proposed development is likely to significantly affect threatened species, populations or ecological communities, a Biodiversity Development Assessment Report per the requirements of the Biodiversity Conservation Act 2016 is required.

Note: Development that is likely to significantly affect threatened species needs to be assessed against the following:

- Biodiversity Offsets Scheme threshold; or
- Assessment of significance; or
- Development on Areas of Outstanding Biodiversity Values (see Biodiversity Values Map);or
- Environmentally Sensitive Land Map.

3. If the proposed development is unlikely to significantly affect threatened species, populations or ecological communities, documentation which provides justification for that conclusion is required for assessment.

4. A description of any proposed measures to avoid and / or ameliorate any such potential adverse impact is to be provided.

   a. Fauna habitat protection and enhancement must be undertaken on a like for like basis, taking into account seasonal active roosting and nesting.

   b. Any native vegetation to be removed must be offset on a 1:1 ratio, like for like basis.

5. Development consent may not be granted to development on land shown on the Environmentally Sensitive Land Map affected by any of the categories identified in the legend, unless Council is satisfied that the development meets the objectives of this clause and ensures that:

   a. The development is designed, sited, constructed, managed and operated to avoid potential adverse environmental impact, or

   b. Where a potential adverse impact cannot be avoided and/or better conservation outcomes achieved, the development:

      i. Is designed and sited so as to have minimum adverse impact, and

      ii. Incorporates effective measures so as to have minimal adverse impact, and

      iii. Incorporates restoration of any existing disturbed or modified area on the site and where appropriate,

      iv. Creates corridor linkages (where possible), expands the size of strategic remnants in accordance with equivalent vegetation / habitat replacement.

Further Information:

- *Biodiversity Conservation Act 2016*
- *Fisheries Management Act 1994*
- *Biodiversity Values Map*
- *Environmentally Sensitive Land Map*

Commonwealth

- *Environment Protection and Biodiversity Conservation Act 1999*

2.6 Riparian Corridors

Background

A riparian corridor forms a transition zone between the land, also known as the terrestrial environment, and the river or watercourse or aquatic environment. Riparian corridors perform a range of important environmental functions such as:

- Providing bed and bank stability and reducing bank and channel erosion;
- Protecting water quality by trapping sediment, nutrients and other contaminants;
- Providing diversity of habitat for terrestrial, riparian and aquatic plants (flora) and animals (fauna);
- Providing connectivity between wildlife habitats;
- Conveying flood flows and controlling the direction of flood flows;
- Providing an interface or buffer between developments and waterways; and
- Providing passive recreational uses.

The protection, restoration or rehabilitation of vegetated riparian corridors is important for maintaining or improving the shape, stability (or geomorphic form) and ecological functions of a watercourse.

Approvals Required

Controlled activities carried out in, on or under waterfront land are regulated by the *Water Management Act 2000*. The **Department of Industry - Water** administers the *Water Management* Act *2000* and is required to assess the impact of any proposed controlled activity to ensure that no more than minimal harm will be done to waterfront land as a consequence of carrying out the controlled activity.

Waterfront land includes the bed and bank of any river, lake or estuary and all land within 40 metres of the highest bank of the river, lake or estuary.

If you are planning any work / development, in, on or under waterfront land, approval must be obtained from the **Department of Industry - Water (or their equivalent agency)** before commencing the controlled activity.

2.7 Bush Fire Risk Management

Background

The Camden Bush Fire Prone Lands Map shows land that can be prone to a bush fire or is likely to be subject to bush fire / ember attack. The Bush Fire Prone Land Maps have been prepared by Council and certified by the Commissioner of the NSW Rural Fire Service.

In general, Bush Fire Prone Land mapping identifies vegetation types and associated buffer zones. Bushfire prone land mapping is designed to flag a property that has the potential to be threatened by bushfire and to initiate an assessment under the NSW Rural Fire Service (RFS) publication *Planning for Bush Fire Protection* to determine whether land management and or building construction measures need to be adopted to help safeguard the development, its occupants and neighbouring properties from bushfire.

Objectives

a. Prevent loss of, and damage to life, property and the environment due to bushfires by requiring development to be compatible with bushfire risk management principles;

b. Ensure that all new and redeveloped allotments have sufficient measures to minimise the impact of bushfires;

c. Ensure that future development does not increase the bushfire risk management and maintenance responsibilities on adjacent properties;

d. Identify the potential bushfire threats to individual sites and ensure that there are adequate water supplies available for firefighting; and

e. Identify asset protection zones between areas of potential hazard and development.

Controls

1. Development on land identified as bushfire prone on Council's Bush Fire Prone Land Map must address the bush fire protection measures in the NSW RFS publication *Planning for Bush Fire Protection (or equivalent).*

NOTE: Applications to build within the Flame Zone or proposing a performance-based solution under the *Planning for Bush Fire Protection* Guidelines will be referred to the Rural Fire Service (RFS) for comment.

2. Asset protection zones must be contained wholly within the subdivision they are designed to protect. The asset protection zones are to be placed as a restriction as well as a positive covenant on the burdened allotments. No habitable buildings or storage structures are permitted within those zones.

3. Asset protection zones, fire trails and perimeter roads are not permitted on land that is considered or zoned environmentally sensitive.

4. For new subdivisions, compliance with Planning for Bush Fire Protection may require road design alterations (i.e. wider carriageways). In such an event the requirements of Planning for Bush Fire Protection override any road design requirements of this DCP (including Schedules) or Council's Engineering Specifications.

2.8 Flood Hazard Management

Background

Flooding and the natural watercycle processes can at times detrimentally affect property, livestock and human health and safety, especially within an area such as Camden LGA where vast areas are subject to periodic inundation by flood waters.

Objectives

a. Minimise the potential impact of flooding on development;

b. Limit changes in flow rate or flow duration within the receiving waterway as a result of development in order to reduce downstream flooding; and

c. Adequately control and contain site generated flooding and prevent damage by stormwater to the built and natural environment.

Controls

1. Development on flood prone land must comply with Council's *Engineering Design Specifications* and *Flood Risk Management Policy*.

2.9 Contaminated and Potentially Contaminated Land Management

Background

Land contamination is most often the result of past uses. It can occur as a result of poor environmental management and waste disposal practices or accidental spills in industrial or commercial activities. The poor management of contaminated land can present a risk to public health and the environment. The following objectives and controls allow Council to make a full assessment of any contamination risks, prior to determining a development application. It notes that *State Environmental Planning Policy (Resilience and Hazards) 2021* states that Council must not grant consent unless it has considered whether the land is contaminated.

Objectives

a. Make informed decisions about the capability of land to support development based on the framework for the management of Contaminated Lands in the Camden LGA as set out in the Council's adopted policy for the Management of Contaminated Lands;

b. Minimise the risks to human health and the environment from the development of potentially contaminated land; and

c. Ensure that potential site contamination issues are adequately identified and remediated at the subdivision stages.

Controls

1. An assessment is to be made by the applicant under *State Environmental Planning Policy (Resilience and Hazards) 2021* (or equivalent) as to whether the subject land is contaminated prior to the submission of a development application.

Note: The following documents prepared by NSW Environmental Protection Authority, the National Environmental Protection Council, and Camden Council, where relevant, must be used in preparing contamination assessments and all levels of contaminated site reports:

- *Contaminated Sites: Sampling Design Guidelines*
- *Contaminated Sites: Guidelines for Consultants Reporting on Contaminated Sites*
- *Contaminated Sites: Guidelines for Assessing Service Station Sites*
- *Contaminated Sites: Guidelines for the NSW Site Auditor Scheme*
- *National Environmental Protection (Assessment of Site Contamination) Amendment Measure 2013Council's Adopted Policy*
- *Management of Contaminated Lands*

2. If contamination is present on the land, Council must consider whether the proposed land use is suitable or, if not suitable, can the land be made suitable following remediation pursuant to *State Environmental Planning Policy (Resilience and Hazards) 2021*. Where land is proposed to be remediated, appropriate documentation is to be presented to Council supporting the works to be undertaken to achieve suitability.
3. Where development is proposed on a site where the Council suspects that contamination may be present or for applications proposing a change of use to a more sensitive land use (e.g. residential, education, public recreation facility etc), a Site Contamination Investigation must be submitted with the DA. Depending on the outcome of the investigation, more detailed Environmental Site Investigations may also be required.
4. All contamination investigations (Stage 1 or 2), remediation (Stage 3) and validation work (Stage 4) must be undertaken by a suitably qualified consultant and in accordance with the protocols of Council's Policy – Management of Contaminated Lands and the NSW EPA Contaminated Sites Guideline Booklets or NEPM (2013 Amended), where relevant.
5. Development applications for land subdivision and sensitive land uses must be accompanied by a contamination investigation report as required by Council's Policy - Management of Contaminated Lands.

    If a preliminary (Stage 1) contamination investigation identifies contamination, then a detailed (Stage 2) investigation will also be required. Where the detailed investigation triggers a requirement for remediation then a Remediation Action Plan (Stage 3) must also be submitted with the development application. All required remediation works will require development consent before works can commence.

NOTE: Council may require a 'Site Audit' review conducted by a NSW EPA Accredited Site Auditor to be provided at any stage of the contamination investigation, remediation, and validation stages. All site audit reviews will lead to a 'Site Audit Statement' to be issued by the Site Auditor at the conclusion of works.

2.10 Development near Camden Airport

Background

The operation of the airport is subject to the provisions of the Camden Airport Master Plan.

Objectives

a. Ensure the effective and on-going operation of Camden Airport;

b. Ensure that airport operations are not compromised by surrounding development; and

c. Ensure that aircraft are protected from adverse impacts from ground lighting and gas efflux.

Controls

1. Ground lighting within the area shown in the Camden Airport Master Plan highlighting maximum lighting intensities surrounding Camden Airport, must not impact on Airport operations. Guidelines for aeronautical ground lights can be found in the *Manual of Standards Part 139 – Aerodromes*, Section 9.21 or equivalent.

2. Stack and vent efflux installations located within 15km of the Camden Airport must comply with the requirements set out in Advisory Circular 139-05 issued by the Civil Aviation Safety Authority.

3. Buildings or structures located within the area affected by the Camden Airport OLS or PANS-OPS contained in the Camden Airport Master Plan must use materials that have low reflectivity.

Note: Clause 7.2 of CLEP 2010 contains provisions relating to obstacle limitation surfaces and PANS-OPS, and Clause 7.3 of CLEP 2010 contains provisions relating to ANEF contours and noise exposure.

2.11 Development affected by the Western Sydney Airport

Background

The Western Sydney Airport (WSA) planned at Badgerys Creek (within Liverpool City Council's LGA) is located to the north of the Camden LGA. Whilst the WSA is not within the Camden LGA, the protected airspace around the airport encroaches on to certain land within the Camden LGA.

Protected airspace is also referred to as Obstacle Limitation Surface (OLS) and Procedures for Air Navigation Services – Aircraft Operations (PANS-OPS).

Where proposed development may impact on the protected airspace, certain approvals are required from the airport and the applicant must seek approval from the Secretary of the Federal Department of Infrastructure, Regional Development and Cities (or their equivalent). For properties within Cobbitty, Bringelly and Rossmore, the OLS may be relatively close to the natural ground level and there is potential for new buildings to encroach into protected airspace.

Objectives

a. Ensure that new developments are not detrimentally impacted by the operations of Western Sydney Airport;

b. Ensure new development is approved in accordance with Federal legislation and guidelines; and

c. Ensure the effective and on-going operation of the Western Sydney Airport.

Controls

1. The WSA must be notified of all development applications buildings, structures or activities that will penetrate the Western Sydney Airport OLS and / or PANS-OPS.

2. Stack and vent efflux installations located within 15km of the Western Sydney Airport must comply with the requirements set out in Advisory Circular 139-05 (as updated) issued by the Civil Aviation Safety Authority.

Further Information

The National Airports Safeguarding Framework (NASF) provides guidance on delivering safety and amenity outcomes for developments near airports.

2.12 Acoustic Amenity

Background

Acoustic amenity in the community can be affected by a range of sources including, transportation (motor vehicles, aircraft, trains), industrial uses of all types and many commercial uses. This can not only be a potential annoyance, but at higher noise levels may also have health consequences.

A variety of mitigation strategies exist to reduce or manage sound levels and preserve the acoustic amenity of an area. This subsection seeks to establish criteria and detail acoustic design measures to minimise noise emissions that may arise from existing or proposed development.

Objectives

a. To minimise the impacts of noise from major transport infrastructure and commercial and industrial areas on residential amenity and other noise sensitive uses;

b. To achieve an acceptable noise environment whilst maintaining well designed and attractive streetscapes; and

c. To minimise the impacts of noise on sensitive receivers through subdivision layout and building design.

Controls

Acoustic Amenity (General)

1. Acoustic reports (where required), must be prepared by a suitably qualified consultant. As a minimum an acoustic report must: identify receivers; determine background noise levels (where required); establish noise criteria; provide predicted noise levels (including relevant assumptions); assess potential impacts; and consider reasonable and feasible mitigation measures.

   Council may consider a preliminary assessment from a suitably qualified acoustic consultant, justifying why an acoustic report is not required.

2. Bedrooms, main living areas and principal private open spaces must be located away from noise sources (Refer to Figure 2-1).
3. Noise attenuation measures must not adversely impact upon passive surveillance, active street frontages and energy efficiency.
4. Residential plant and equipment must not generate a noise level greater than 5dBA above background noise level as measured at the boundary of a noise sensitive property during the hours of 7.00am to 10.00pm. Noise from plant and equipment must not be audible in habitable rooms of adjoining noise sensitive properties during the hours of 10.00pm to 7.00am.
5. Physical noise barriers such as noise walls or solid fencing (other than earth mounds) are not generally supported along sub-arterial, transit boulevards or collector roads. Measures to attenuate noise through subdivision layout, building setbacks, building orientation, building design and materials selection should be implemented to achieve compliant noise levels.
6. The use of physical noise barriers (i.e. noise walls or solid fencing) may be supported on arterial roads where it can be demonstrated that the following mitigation measures, in the listed order, are not able to adequately attenuate the noise source:
    a. Locating less sensitive land uses between the noise source and the sensitive receivers;
    b. Using the built form to act as noise barriers;
    c. Optimising the subdivision layout to maximise shielding of principle private open space;
    d. Incorporating noise mitigating building façade treatments and locating bedrooms, main living areas and principle private open space areas away from the noise source;
7. Where noise barriers are required, they must be of a neutral recessive colour and design which blends in with the natural environment. In addition, barriers are to be screened from the road by a landscape strip of at least 1m.

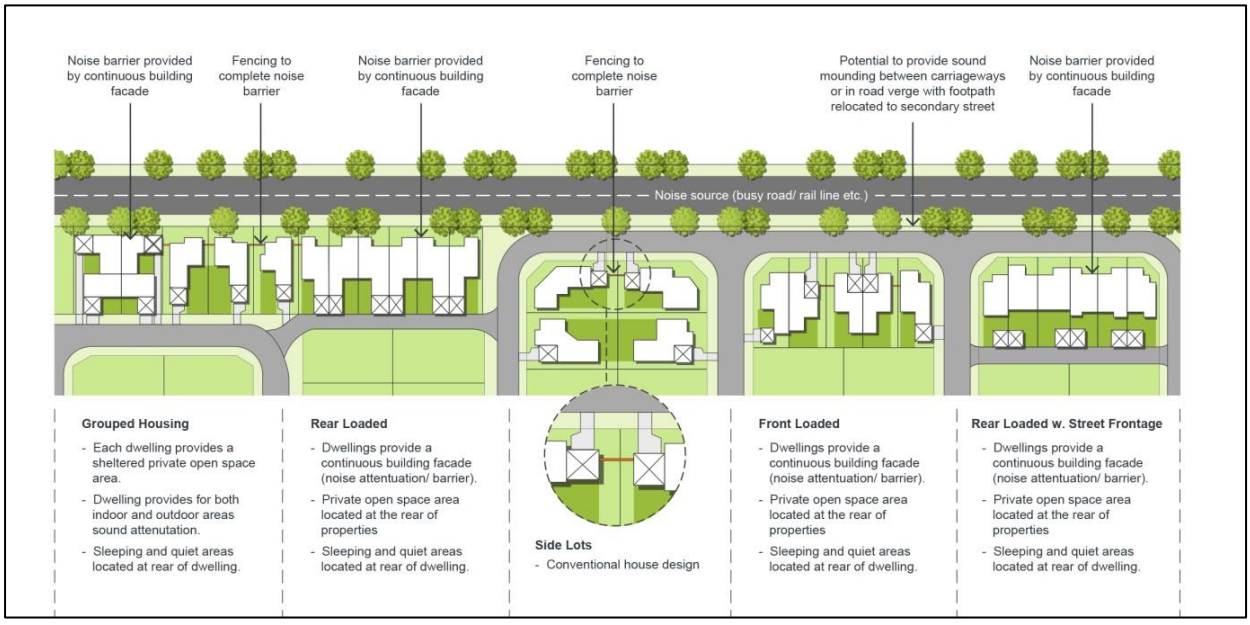


Figure 2-1: How to Mitigate Impacts from Road and Rail

Road and Rail Noise

i. Development applications for residential development and other noise sensitive uses such as places of public worship, hospitals, child care centres and educational establishments must be accompanied by an acoustic report where the development is:

j. adjacent to existing (or proposed) railway line, arterial, sub-arterial roads, transit boulevards; or

k. adjacent to a collector road that is within a 100m radius of the centre of the intersection the above roads (Refer to Figure 2-2).

Note: For all road developments the criteria should apply on the basis of the road traffic volumes projected for 10 years time.

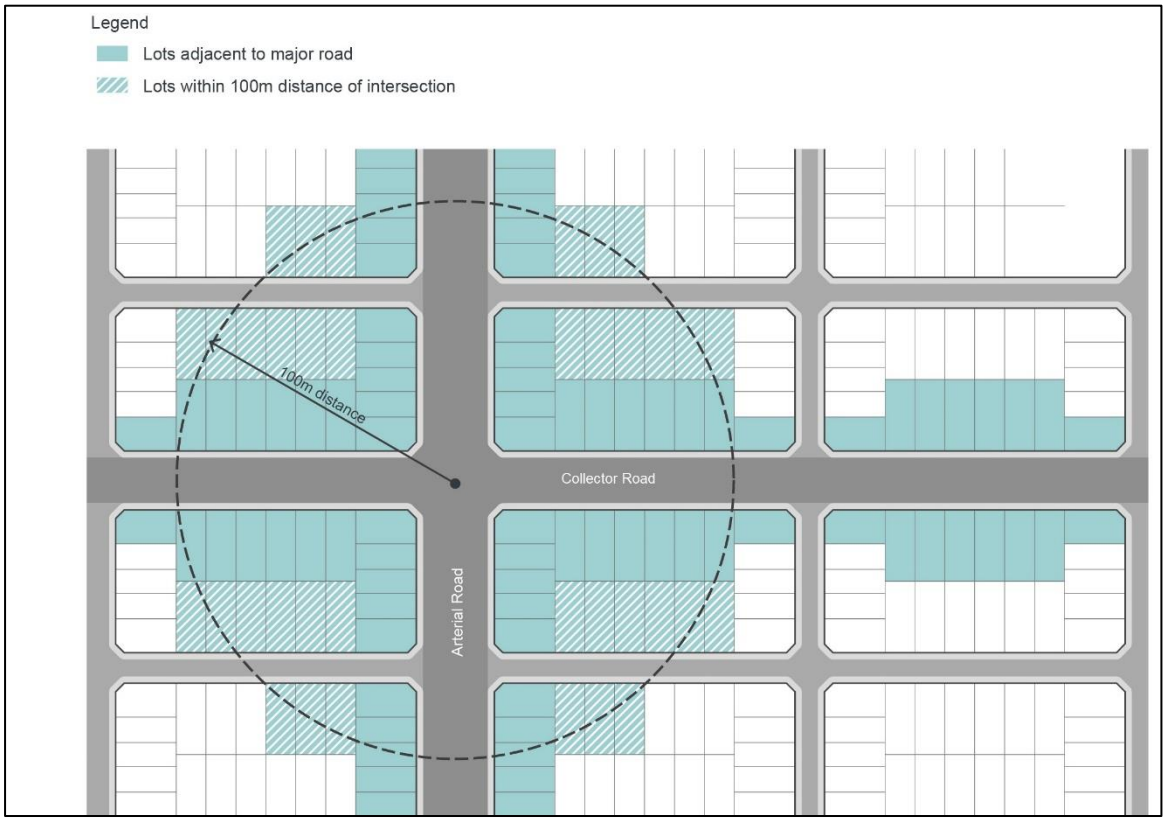


Figure 2-2: Noise from Road and Rail Noise

2. Residential dwellings adjacent to an existing (or proposed) railway line, arterial road, sub-arterial road or transit boulevards, or collector roads that are within 100m of the centre of the intersection of those roads, are to be designed to minimise the impact of noise.

Non-residential buildings such as educational institutions, child care centres, places of worship, and hospitals are also required to be designed to minimise the impact of noise.

Both ‘residential dwellings’ and ‘non-residential buildings’ must comply with the internal noise criteria in ‘Table 3.1’ from the ‘Department of Planning: Interim Guideline – Development Near Rail Corridors and Busy Roads’.

Ventilation Requirements: If internal noise levels with windows or doors open exceed the criteria by more than 10dBA, the design of the ventilation for these rooms should be such that the occupants can leave windows closed whilst also meeting the ventilation requirements of the Building Code of Australia.

3. The principle private open space or an equivalent area of useable open space of a dwelling within a new release area is not to exceed 57dBA LAeq (15hr) from 7am to 10pm.

Note: For clarification purposes, a new release area, includes land mapped as Urban Release Area within the CLEP 2010 and includes Growth Area Precincts that have been rezoned.

For dwellings in areas outside of the new release areas, the principle private open space area is to be attenuated to 55dBA LAeq (15hr) from 7am to 10pm.

Council may consider an increased decibel level where it can be demonstrated that the objectives of this policy are met and the above criteria is not able to be reasonably or feasibly achieved.

Note: The residential noise level criterion includes + 2.5 dBA allowance for noise reflected from the façade ('facade correction').

4. Residential flat building developments are to meet the objectives of Part 4J of the NSW Department of Planning and Environment (or equivalent) - Apartment Design Guide to minimise potential impacts of road and rail noise through appropriate siting and layout of buildings, noise shielding and attenuation.
5. Development applications for residential flat buildings are to document the noise mitigation measures that have been incorporated into the design.
6. An area of communal open space is to be attenuated to 57dBA LAeq (15hr) from 7am to 10pm.

New and Upgraded Roads / Railway Lines and Traffic Generating Development near Residential and Other Sensitive Land Uses

1. Where new and upgraded roads or traffic generating developments are proposed near residential and other noise sensitive land uses, acoustic assessments are to be undertaken in accordance with the NSW EPA Road Noise Policy.
2. Where new and upgraded railway lines are proposed near residential and other noise sensitive land uses, acoustic assessments are to be undertaken in accordance with the NSW EPA Rail Infrastructure Noise Guideline (2013).

Aircraft Noise

1. Any noise sensitive development, including but not limited to residential developments and schools, within the ANEF 20 contour (or higher) are considered to be potentially affected by aircraft noise and will require an acoustic assessment to be undertaken to demonstrate

compliance with Australian Standard 2021 – 2015 Acoustics – Aircraft Noise Intrusion – Building Siting and Construction.

Noise from Industrial Development or Commercial Development (including Community Facilities and Religious developments)

1. An acoustic assessment will be required for industrial and commercial development where the development:
    a. Has the potential to impact on residences or noise sensitive receivers (defined as a LAeq, 15min level of more than background or more than the recommended amenity criteria within the NSW Environmental Protection Authority's Noise Policy for Industry (NPfI) minus 10 dB); or
    b. Is located within a 100m radius from, or has a direct line of site of a distance of 150m to, residences or noise sensitive receivers; or
    c. Proposes to operate anytime between 10pm and 6am.
2. Noise emissions from industrial development must be assessed in accordance with the NSW EPA Noise Policy for Industry (NPfI).
3. Noise emissions from commercial development must be assessed in accordance with the Noise Guide for Local Government and must be consistent with the methodology within the NSW EPA NPfI.
4. Noise from the construction of industrial and commercial developments must be assessed and managed in accordance with the NSW Environmental Protection Authority's Interim Construction Noise Guideline 2009.

Note: When commercial development is proposed on existing greenfield land and the surrounding land is expected to undergo significant land use change (described in section 2.4.3 of NPfI) the adoption of the 'typical existing background noise levels' applicable to 'suburban residential' from 'Table 2.3' of the NPfI may be considered by Council for the assessment of the "Project Intrusive Noise Level."

Noise from Child Care Centres and Educational Establishments

1. Development applications for child care centres and educational establishments must be accompanied by an acoustic report.
2. Child care centres and educational establishments are to be designed to not exceed the following noise levels:
    a. LAeq (15 minutes) noise level from children in the outdoor areas of the site must not exceed the background LA90 sound level by more than 10dBA when measured at the boundary of the nearest or most affected residential premises (or if the boundary is more than 30 metres from a residential dwelling, at the most affected point within 30 metres of a residence).
    b. LAeq(15 minutes) noise levels from all other operations (i.e. car park, plant) must not exceed the background LA90 sound level by more than 5dB(A) when measured at the boundary of the nearest or most affected residential premises.

Note: If there is an inconsistency between the SEPP (Transport and Infrastructure) 2021 (and Child Care Planning Guidelines) and the DCP, the SEPP will take precedence.

Noise from Licensed Premises

1. Any music/entertainment and noise of patrons (whilst on-site) from a licensed premises, must be assessed in accordance with the noise emission criteria as follows:
    a. The LA10,15min* noise level emitted from the licensed premises must not exceed the background noise level in any Octave Band Centre Frequency (31.5Hz – 8kHz inclusive) by more than 5dB between 7:00am and 12:00 midnight at the boundary of any affected residence.
    b. The LA10,15min* noise level emitted from the licensed premises must not exceed the background noise level in any Octave Band Centre Frequency (31.5Hz – 8kHz inclusive) between 12:00 midnight and 7:00am at the boundary of any affected residence.
    c. The LA10,15min* noise level emitted from the licensed premises when measured inside a habitable room of a residential premises between 12pm and 7am should not give rise to a measurable increase above the ambient level in any Octave Band Centre Frequency (31.5Hz – 8kHz inclusive) in the absence of the music.

    * For the purposes of this condition, LA10 can be taken as the average maximum deflection of the noise emission from the licensed premises.

2. A noise management plan must be submitted with the DA that addresses noise associated with patron departure in on site car parks or local streets, particularly after 10.00pm. Alternatively, noise reduction and mitigation measures (where required) must be addressed in a general plan of management for the premises.

Noise Attenuation of Public Open Space

1. Public open space areas are to be designed to sensitively locate passive recreation areas away from noise sources without compromising the overall functionality of the area.
2. Physical noise barriers (other than earth mounds) for public open space areas will not be supported.

Further Information

- Department of Planning and Environment - Apartment Design Guide
- NSW EPA Road Noise Policy
- Australian Standard 2021:2015 Acoustics – Aircraft Noise Intrusion – Building Siting and Construction
- NSW EPA Noise Policy for Industry (NPfI)
- Interim Construction Noise Guideline
- NSW EPA Noise Guide for Local Government

2.13 Air Quality and Odour

Background

Pollutants are emitted to the air from various sources. When these emissions are discharged unmitigated, during periods of poor dispersion, or under conditions conducive to smog formation, poor air quality may result. It is imperative the following objectives and controls are adhered to in order to minimise adverse air quality impacts.

Objectives

a. Preserve air quality, minimise pollution and improve environmental amenity; and

b. Ensure appropriate levels of air quality for the health and amenity of residents.

Controls

1. Development that is likely to result in the emission of atmospheric pollutants, including odours, as determined by Council must include operating practices and technology to ensure that such emissions are acceptable. Details of these measures are to be provided at development application stage.

2. Development that is likely to be impacted upon by atmospheric pollutants and/or odours from existing land uses, may require the undertaking of an odour impact assessment or similar assessment dependent on the type of pollutant being assessed. For odour impact, assessment will be undertaken in accordance with the NSW EPA Technical Framework "*Assessment and Management of Odour from Stationary Sources in NSW*". For other pollutants, assessment may be required to determine if pollutants comply with the *Protection of the Environment Operations Act 1997* and supporting Regulations. The assessment may need to be undertaken at rezoning stage for rezoning and subdivision proposals, or at development application stage for other proposed land uses where relevant.

Note: *Emissions from premises of any matter, whether solid, liquid or gaseous must comply with the Protection of the Environment Operations Act and its Regulations, or a pollution control consent provided by the Department of Environment and Conservation for Scheduled Premises.*

2.14 Waste Management

Background

This section outlines the requirements for the management of waste from new developments. This section of the DCP is to be read in conjunction with Council's Waste Management Guideline, where more detail will be provided for different development types. For further information on Waste Management Plans (WMPs), waste management technical requirements and traffic requirements for all development refer to Council's Waste Management Guideline.

Objectives

a. Ensure that an appropriate waste service is provided to all new development;

b. Ensure waste collection vehicles have safe, reliable access to all collection points and can manoeuvre to all waste collection points during all stages of a development; and

c. Ensure provision of adequately designed and constructed storage and collection areas for all developments that allows for responsible storage and collection of all waste types that are generated at the development.

Control

1. A Waste Management Plan (WMP) must be submitted for all new development, including demolitions, construction and the ongoing (or change of) use. A WMP outlines the waste that will be generated and how the development proposes to manage the waste.

   For further information on WMPs refer to Council's *Waste Management Guideline*.

Note: In addition to this section, other chapters provide additional controls for waste storage and waste collection.

Additional controls below provide guidance for specific development types.

Commercial Developments

Controls

1. The WMP must show:

   a. The location of the designated waste and recycling storage room(s) or areas, sized to meet the waste and recycling needs of all tenants (refer to Council's Waste Management Guideline);

   b. The location of temporary waste and recycling storage areas within each tenancy. These are to be of sufficient size to store a minimum of one day's worth of waste;

   c. An identified collection point for the collection and emptying of waste bins;

d. The path of travel for moving bins from the storage area to the identified collection point. There must be step-free access between the point at which bins are collected/emptied and the waste/recycling storage room(s) or area(s); and

e. The on-site path of travel for collection vehicles (if collection is to occur on-site).

Mixed Use Developments (Residential/Non-Residential)

Controls

1. Mixed Use development must incorporate separate and self-contained waste management systems for the residential component and the non-residential component.

Industrial Development

Controls

1. There must be convenient access from each tenancy and/or larger waste producing area of the development to the waste/recycling storage room(s) or area(s). There must be step-free access between the waste storage and collection areas.

2. Every development must include a designated general waste/recycling storage area or room(s), as well as designated storage areas for industrial waste. These must be designed in accordance with specific waste and environmental laws, protocols, workplace health and safety guidelines and technical design guidelines and standards.

3. The waste/recycling storage room/areas must be able to accommodate storage bins that are of sufficient volume to contain waste generated from the site.

4. Waste management storage rooms/areas must be suitably enclosed, covered and maintained to prevent ingress of rainwater and stormwater into the stormwater system.

5. Production, storage and disposal of liquid or hazardous waste (such as contaminated or hazardous material or products) must be designed according to the appropriate NSW EPA, SafeWork NSW and other technical standards.

6. Appropriate vehicle access must be made for the collection of each waste type, designed to Australian Standard AS 2890.2

Further Information

- Protection of the Environment Operations Act 1997
- Waste Avoidance and Resource Recovery Act 2001.
- Protection of the Environment Operations (Waste) Regulation 2014
- NSW Waste Avoidance and Resource Recovery Strategy 2014 - 2021.
- Better Practice Guide for Resource Recovery in Residential Developments 2019
- Collection of Domestic Waste Code of Practice.
- Better Practice Guidelines for Waste Management and Recycling in Commercial and Industrial Facilities 2012.
- Council's Waste Management Guidelines
- Waste Management Plan Template

2.15 Development adjoining Upper Canal System

Background

The Upper Canal System (including its corridor) is listed on the State Heritage Register. The Upper Canal extends generally through the Australian Botanic Garden Mount Annan, crossing under Narellan Road then passes north through Currans Hill and the Central Hills. The Upper Canal is critical water supply infrastructure that services Greater Sydney by transferring bulk raw water from the Upper Nepean Dams to the Prospect water filtration plant. The Upper Canal and corridor are classified as a *controlled area* under the provisions of the Water NSW Act 2014 This Act is administered by WaterNSW.

Development adjacent to the Upper Canal can potentially impact on the Canal corridor and the water within it. These impacts include, but are not limited to, the following:

a. The potential impacts on the integrity of the infrastructure including changes to drainage such as increased risk of flooding and stormwater flows from the proposed development entering the corridor, resulting in erosion and slippage, and impacts during construction such as vibration and cut and fill.
b. The potential impacts of the development on the quality of water within the Upper Canal, include impacts on water quality from flooding and stormwater from adjacent development. Any development should have a neutral or beneficial impact on water quality within the Upper Canal.
c. The potential impacts of the proposed development on the security of the infrastructure and associated corridor including fencing.
d. The potential impact of the proposed development on the ability of WaterNSW to manage and maintain the infrastructure, including maintenance of unrestricted access to the existing entry points to the Upper Canal corridor by WaterNSW staff, plant and vehicles.

Objectives

a. Ensure the Upper Canal and associated corridor is taken into account in siting, designing constructing and operating any proposed development adjoining or in the vicinity of the Upper Canal.

Controls

1. Development proposals adjacent to or in the vicinity of the Upper Canal and associated corridor with the potential to impact on the Upper Canal, should be prepared in liaison with WaterNSW prior to lodging a development application. Development Applications are to refer to WaterNSW's Guidelines for Development Adjacent to the Upper Canal and Warragamba Pipelines.

   The Upper Canal System is shown in Figure 2-3.

2. All development must include the provision of appropriate security/delineation fencing and/or other mitigation strategies in consultation with WaterNSW.

Note:

Proposals to access or enter the Upper Canal corridor at any time will require authorisation in writing from WaterNSW.

Refer to the provisions within the Environmental Heritage Chapter within this DCP and the *Heritage Act 1977* in relation to impact on the heritage significance of the Upper Canal.

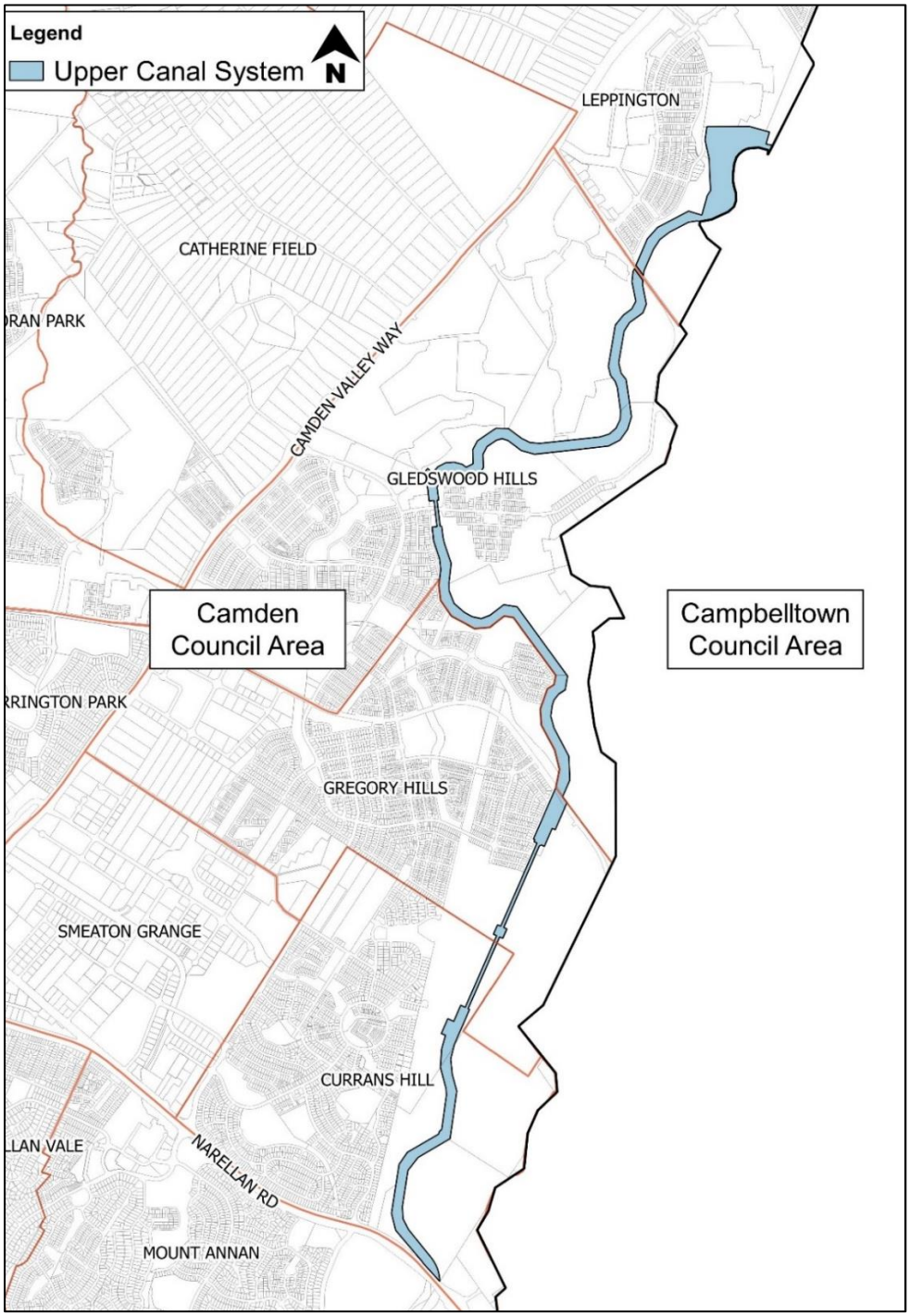


Figure 2-3: Upper Canal System

2.16 Environmental Heritage

Background

Camden's unique environmental heritage is made up of a combination of significant places, buildings, works, relics, moveable objects and precincts. It comprises elements of both the natural and built environment and their related landscape settings; as well as Aboriginal items and places.

Heritage is an integral part of the character of the Camden LGA and has been identified as such consistently over many years by the Camden community. It is important that heritage significance is protected for the benefit of current and future generations.

This chapter of the DCP is focused on ensuring that there is sufficient understanding of the significance of Camden's Heritage and that development and activities in both the private and public domains are sympathetic and contribute to its conservation.

Importantly, heritage listing does not prevent development or changes to a property. It just means that work must be done in a manner that is sensitive to the heritage significance of the site. A balance between protecting heritage significance and alteration to meet modern needs and desires is encouraged.

2.16.1 Aboriginal Culture and Heritage

Background

Aboriginal people are the cultural owners and managers of information relating to their heritage. It is vital to Aboriginal people and to the richness of Camden's heritage, that these important spiritual and cultural links to land are maintained by preserving and protecting places of cultural significance.

Objective

I. To manage Aboriginal heritage values to ensure enduring conservation outcomes.

Controls

1. Development applications must identify any areas of Aboriginal heritage value that are within or adjoining the area of the proposed development, including any areas within the development site that are to be retained and protected (and identify the management protocols for these).

Notes:
Developments or other activities that will impact on Aboriginal heritage may require consent from the Heritage (Department of Premier and Cabinet) (OEH) under the National Parks and Wildlife Act 1974 and consultation with the relevant Aboriginal communities.

Any development application that is within or adjacent to land that contains a known Aboriginal cultural heritage site, must consider and comply with the requirements of the National Parks and Wildlife Act, 1974.

Where the necessary consents under the National Parks and Wildlife Act, 1974 have been obtained, the development application must demonstrate that the development will be undertaken in accordance with any requirements of that consent.

Further Information

http://www.environment.nsw.gov.au/

2.16.2 Heritage Concepts

The following heritage concepts are fundamental to the heritage conservation provisions of this chapter.

The Burra Charter

The Burra Charter is a document prepared by the Australian National Committee of the International Charter for the Conservation and Restoration of Monuments and Sites (Australia ICOMOS). It provides guidance for the conservation and management of places of heritage significance.

Table 2-1: Description of Heritage Concepts

Heritage Places	A collective term used for Heritage Items, Heritage Conservation Areas, culturally significant Built Environment, Landscapes and Archaeological Sites.
Heritage Items	Heritage items can include buildings, sites, places, archaeological items, mature trees and landscapes of both state and local significance. Items of state significance are identified on the State Heritage Register. Items of State and Local significance are identified in Schedule 5 of the CLEP 2010.
Heritage Conservation Area	A Heritage Conservation Area is more than a collection of individual Heritage Items. It is an area in which the historical origins and relationships between various elements creates a sense of place that is special and therefore worth keeping. Two Heritage Conservation Areas are identified in CLEP 2010. One is focused on the Camden Town Centre (Camden Heritage Conservation Area Figure 2-4) and the other on Struggletown Heritage Conservation Area, in Narellan (Figure 2-7). In addition to the general controls, an overview of the character, future character aspirations and the unique controls for each Heritage Conservation Area are detailed in this chapter. These additional controls must be read in conjunction with the General Heritage Provisions.

Culturally Significant Place: -Built Environment -Cultural Landscape -Archaeological Sites	Heritage as a concept is not static. Over time, culturally significant places evolve to warrant their listing as heritage items. As an area, Camden demonstrates a mixture of culturally significant built heritage, and landscapes. Although not listed as Heritage items, these heritage places are still considered to contain heritage significance and are listed in Tables 2-2, 2-3 and 2-4 and Figures 2-8 and Figure 2-9. Further investigation of heritage significance is required to be carried out on each identified place when a development application is lodged. An archaeological site may be a known site (as listed in Table 2-4); or a site that is discovered as part of site investigations and development. Where a development proposes disturbance to an archaeological site or relic, the applicant must contact the NSW Heritage Branch for compliance with the statutory requirements.
Development in the Vicinity of a Heritage Place	A development within the vicinity of a heritage item, culturally significant heritage place or heritage conservation area; must be assessed to determine whether it will have any impact on the significance of the heritage place and how this can be mitigated. A Heritage Impact Statement (HIS) may be required.
Aboriginal Heritage	Aboriginal Heritage includes places and objects which show evidence of Aboriginal occupation of the Camden LGA, as well as places which are of spiritual importance to Aboriginal culture or customs, but which contain no physical remains. Where a development proposes harm to an Aboriginal site or relic, the applicant must contact the Heritage (Department of Premier and Cabinet) for compliance with the statutory requirements.

Heritage Significance

The Heritage Branch of NSW Heritage (Department of Premier and Cabinet) has established widely accepted criteria to be used in ascertaining heritage significance. In summary, a building, relic, object or place may have heritage significance for reasons of historical, aesthetic, scientific or social significance; or a combination of these. In addition, a place could be considered to be of particular note due to its rarity or representativeness.

It is important to note that a heritage place does not have to be completely intact or in good condition for it to be of heritage significance. Rather it is the place's ability to demonstrate the criteria discussed above that is important. Many heritage places have undergone change overtime such as extensions or alterations, and these have not had an adverse impact upon the identified significance of the place. Before any alterations or new works are proposed to a heritage place, there must be a thorough understanding of its heritage significance. Once this is known decisions about changes can be more easily and appropriately made.

NOTE:

The Development Application fees charged by other Authorities such as for Integrated Development will not be waived.

Heritage Impact Statement (HIS)

Council requires a HIS to be provided with a development application where, in the opinion of Council, the heritage significance of the following could be affected:

- a heritage item (see Schedule 5 of CLEP 2010).
- a heritage conservation area (Figures 2-4, 2-5 and 2-6).
- a Culturally Significant Place (Built Environment, Cultural Landscape or an Archaeological Site) identified in Table 2-2, 2-3 and 2-4 and Figures 2-8 and 2-9.
- development in the vicinity of any of the above and in the vicinity of St Thomas Chapel and Figure 2-7.

The size and content of the HIS will vary depending on the heritage place involved, and the scale and impact of the proposed development. Further guidelines for the preparation of Heritage Impact Statements can be found on the Heritage (Department of Premier and Cabinet) website or by using the following link.

http://www.environment.nsw.gov.au/resources/heritagebranch/heritage/hmstatementsofhi.pdf

Conservation Management Plan (CMP)

A CMP is generally required for items listed in the State Heritage Register. It may also be required for any major development or subdivision proposals to local heritage items, or where requested by Council. In addition to the above, it is to provide a conservation policy and associated strategy.

A HIS and CMP must be prepared by a qualified and experienced Heritage Consultant and be carried out in consultation with Council.

2.16.3 General Heritage Provisions

Background

This subsection sets out general objectives and controls for various types of work and is applicable to all Heritage Items, Heritage Conservations Areas, Culturally Significant Places and for development in the vicinity of Heritage Places.

Objectives

Conservation

a. Retain and conserve heritage items and their significant elements and settings including views and visual catchment;
b. Retain and conserve where possible, the significant character of heritage places;
c. Retain original elements such as verandahs, balconies, characteristic roof forms, traditional materials, finishes and associated details and traditional planting schemes;
d. Retain and conserve culturally significant items if they are found to have heritage significance;
e. Encourage new and sympathetic uses of buildings to conserve their heritage significance;
f. Protect and conserve heritage in accordance with the principles of the Burra Charter;
g. Ensure that development is undertaken in a manner that acknowledges a heritage place/s, archaeological potential or protects sites of archaeological significance;
h. Encourage routine maintenance for the ongoing conservation of heritage places; and
i. Ensure that adequate consideration is given to the significance of a heritage place, where demolition or partial demolition proposed.

Compatibility of new work

a. Ensure development is based on, and sympathetic to, an understanding of the heritage significance of the place;
b. Ensure that any development within a heritage conservation area is compatible with and sympathetic to the significant characteristics of the conservation area as a whole and makes a positive contribution to the area; and
c. Ensure that the development in the vicinity of a heritage place is undertaken in a manner that does not detract from the heritage significance of the place.

Development details

a. Ensure the integrity of the heritage item and its setting (including landscape visual catchment and significant characteristics); or the Heritage Conservation Area is retained by the careful design, scale and siting of new buildings and alterations and additions to existing buildings;
b. Encourage the removal of unsympathetic work, the conservation of original elements and the reinstatement of significant missing building elements where documentary evidence of their detail or location exists;
c. New development may use contemporary design, materials and construction techniques; but must maintain not adversely impact the heritage significance of the place, and the significant elements that make up the character of the Heritage Conservation Area;

d. Promote the use of high quality design, materials, finishes and detailing which is appropriate sympathetic to the architectural style, building type and historic context of a heritage place; and
e. Promote the use of colour schemes that are sympathetic to the character of the individual building, group of buildings and the historic context a heritage place.

Associated details

a. Ensure that fences, gates, and outbuildings and other ancillary structures are sympathetic to the significance of the heritage place;
b. Promote landscaping that is consistent with appropriate to the significance of the heritage place; and
c. Minimise the impact of new driveways on heritage items and the streetscape; and retain an active retail street frontage.

Controls

Design

1. New buildings must be of a simple, contemporary design that avoids “heritage style” replication of architectural or decorative detail.

2. New work must be easily identified as such and is required to be sympathetic to the heritage place.

3. When alterations or additions are proposed, the removal of any existing unsympathetic elements is encouraged.

4. Where significance permits modification, alterations to the original room layout of a heritage item is permissible provided the original details such as joinery, plasterwork and wall nibs and can still be interpreted.

5. New development must be designed to interpret and complement the general form, bulk, scale, height, architectural detail and other significant elements of the surrounding heritage place.

6. Where an addition is not visible from a street or public place, greater flexibility in design may be considered.

7. The significant internal and external fabric and building elements of the principal building are to be retained and conserved.

Siting

1. Alterations and additions to a heritage item or within a conservation area will be sited and designed to retain the intactness and consistency of the streetscape and the significance of the conservation area;

2. Additions to buildings in the conservation area are to be predominantly to the rear of the existing building. Additions should not visually dominate the existing building.

3. Additions to the side of existing buildings will be considered where it is substantially set back from the front building alignment and the style and character of the building or conservation area will not be compromised.

4. Where there is a uniform building front setback, new development must recognise this.

5. The existing informal and irregular pattern of rear property building alignments is to be retained.

Roofs and Roofscape

1. The existing pattern, pitch, materials and details of original roof forms within the Heritage Conservation Area must be retained.

2. Secondary roof forms should be subservient in form, scale and location to the main roof.

3. Missing roof elements must be reinstated when unsympathetic roofs are replaced.

Verandas and Balconies

1. Original verandas and balconies are not to be removed, altered or enclosed.

2. Verandas and balconies may be reinstated on street front elevations where historical evidence supports their previous existence. In such circumstances, the detail and design should be representative of the original.

3. Verandas and balconies on new buildings should generally be of a contemporary design and materials that respond to the character, scale and from setting of the heritage place.

Height

1. Additional floor space may be permitted within attic roof space where no significant external changes are made to the existing wall heights and roof forms.

2. Dormers with traditional proportions and sympathetic detailing that complements the style and details of the roof may be considered.

3. Loft type structures in the conservation area may be appropriate only where the bulk, size and scale does not overwhelm the existing or surrounding buildings and can be included in the roof space of a pitch that reflects surrounding existing development.

Materials and Finishes

1. Surviving original materials, finishes, textures and details must be retained and conserved where appropriate.

2. Materials, finishes, and textures must be sympathetic to the historic context of the original significant buildings within the streetscape.

3. Contemporary materials are permitted where their proportions, detailing and quantities are compatible with the character of the area. Large expanses of glass and reflective wall and roof cladding are not appropriate.

4. The significant original internal elements of a building, such as distinctive joinery, fireplaces, decorative plasterwork are generally to be retained and conserved in heritage places.

5. Reconstruction or restoration of missing significant elements is encouraged and should be based on documentary evidence when available.

Colours

1. Colour schemes on heritage items must be appropriate and sympathetic to the building type period and architectural style.

2. New buildings need not employ traditional colour schemes, but should use colours sympathetic to surrounding development and contribute to the cohesiveness of the Heritage Place. A material and colour palette sheet must be provided to Council for assessment.

3. Original significant masonry that is unpainted or unfinished must not be rendered, bagged, painted or otherwise refinished in a manner inappropriate to the architectural style of the building.

Fences and Gates

1. Existing fences that have been identified as being significant or that contribute to the overall setting or character of a heritage place are to be retained, rather than replaced.

2. New fences should be sympathetic to the original fencing in terms of design, materials, colour and height. If the original fence type is not known, it should be representative of the architectural period of the heritage building. Old photographs or inspection of remaining fabric can often reveal the original fence type.

3. Removal of unsympathetic fences and reinstatement with fencing appropriate to the architectural era is encouraged.

4. Traditional fence heights and styles that do not obscure heritage items or visually dominate Heritage Conservation Areas are to be used.

5. On sloping sites fences and walls should be stepped down the slope.

Landscaping

1. Front gardens should predominately be landscaped in a style appropriate to the building type and to embellish the street front elevation.

2. Landscaping in a heritage place should, retain the original design elements, paths, significant trees and established gardens.

Garages, Carports and Outbuildings

1. Garages, carports and outbuildings must be simple, ancillary structures, that are designed and sited so that they do not dominate the principal building and not detract from the Heritage Conservation Area.

2. Parking structures are not to be located in the front setback area, unless documentary evidence of their location in the front setback exists.

Vehicle Access

1. Vehicle access must not impact adversely upon the architectural character and significance of buildings or the streetscape.

2. Driveways should be constructed of gravel, crushed sandstone, bricks or plain concrete or be designed as separated wheel strips. Stencilled concrete is generally not appropriate.

3. Hard stand areas should be kept to a minimum.

Signage

1. Refer to Part 2.15 of this DCP for signs on Heritage Items or in Heritage Conservation Areas.

Associated structures

1. Where shutters and grills are considered necessary for property protection, they must be designed to suit the character of the building, be set back from the face of the surrounding wall, be of an open nature and have minimal impact on the existing building fabric.

2. Appropriate external lighting may be used to highlight the architectural features of significant buildings.

3. Skylights, air conditioning units, antennas, solar panels, satellite dishes etc. must not be visible from the street.

Demolition

- The demolition of a heritage place is contrary to the intent of heritage listing. It will only be considered as a last resort, where a Heritage Impact Statement is submitted covering the following:

    (a) Documentation that all alternatives for retention have been investigated and ruled out.

(b) It can be satisfactorily demonstrated that the building does not satisfy the criteria for listing established by the NSW Heritage Branch.

(c) It has been sufficiently documented and justified that the structure is considered incapable of repair.

- Where consent is issued for demolition, or part demolition, of a heritage place a comprehensive diagrammatic and photographic archival record is to be made of the structure to be demolished. This must be submitted to Council's satisfaction prior to commencement of any demolition works. A heritage consultant experienced in the preparation of an archival recording is required to undertake the recording.

Minor Works and Maintenance

1. CLEP 2010 defines maintenance of heritage places. Routine maintenance, and minor work which is "like for like" or which Council considers will not impact on the heritage significance of the place; may be carried out without consent. Council must be contacted in this regard and approval issued in writing before work is carried out. See Clause 5.10 of the CLEP 2010.

2. All maintenance must involve use of traditional materials or those that will not have an adverse impact on the heritage significance. Guidelines for the use of traditional material and conservation methods can be found on the Office of Environment website using the following link:

   http://www.environment.nsw.gov.au/Heritage/publications/index.htm

2.16.4 Camden Heritage Conservation Area

Background

This subsection sets out the objectives and controls specific to development within the Camden Heritage Conservation Area, the area of which is shown in Figure 2-4. It must also be read in conjunction with the general heritage provisions and heritage controls in Part 5 within the Camden Town Centre.

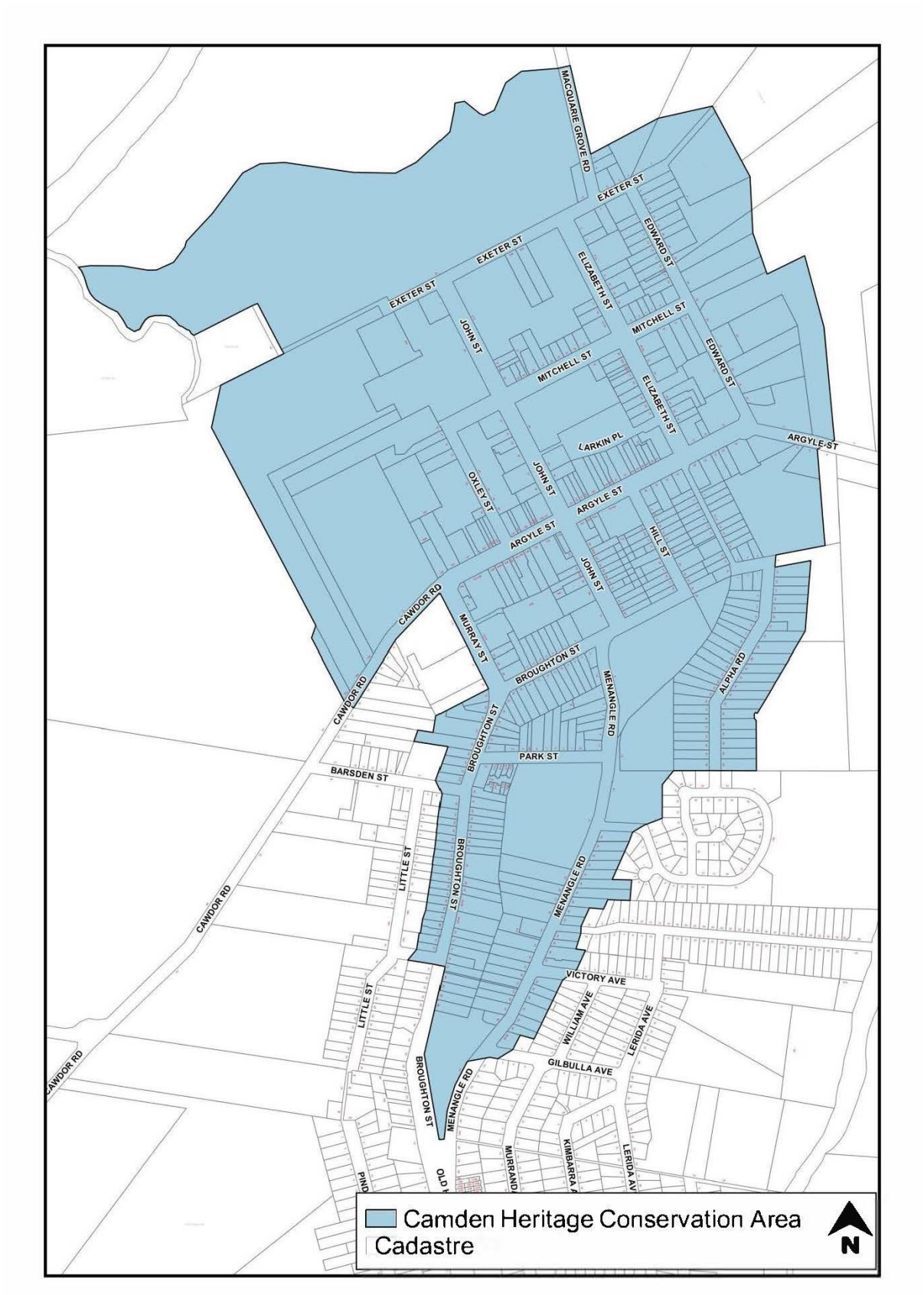


Figure 2-4: Camden Heritage Conservation Area

Character Elements

The distinguishing natural and built character elements of the Camden Heritage Conservation Area include:

1. Distinct tree lined visual gateways as viewed from rural floodplain on the fringes of Camden town.
2. A topographical form which rises from the floodplain.
3. A town which is surrounded by rural hinterland containing transitional community uses.
4. Prominent landmark buildings dominated by St John's Church and in particular it's spire.
5. Cowpasture Bridge which opened land to the west of the Nepean River.
6. A strong grid street network of Camden town.
7. A pronounced "High Street" in Argyle Street, performing a traditional shopping and commerce role and thoroughfare function.
8. A distinctive tree lined and landscaped medium strip with minimal landscaping fronting the shops along Argyle Street.
9. Street lights delineating the carriageway and communicating "seasonal" festive and event information.
10. Buildings covering a range in stylistic periods reflecting the evolution of the town centre and reflecting a diverse palette of building materials and finishes.
11. Uniform single to two storey shop fronts along a wide main street.
12. An important historical, visual and social axis is formed by John Street.
13. A cluster of civic and community buildings in lower John Street.
14. A range of residential premises, from the stately to workers cottages, largely converted to commercial functions; but still some with a residential use.
15. A unique roofscape of smaller roof forms viewed throughout the town.
16. Remnants of a rural service town, particularly in Edward Street.
17. A modest workers cottage precinct in View Street, transitioning into large middle class housing in Alpha Road.
18. Federation cottages and interwar bungalows radiating out from the town centre, with adaptive reuse of these in Broughton Street.
19. A health precinct surrounding Camden Hospital.
20. A series of informal pathways linking parking precincts.
21. The grand Macarthur Park is on the fringe of the Town Centre.

Objectives

a. Retain the unique heritage significance of Camden town, recognising it as a rare and distinctive area;

b. Retain and promote evidence of the historical development of the town and enable interpretation of that historical development;

c. Retain the cohesive character particularly evident in the scale of development in each street;

d. Retain distinctive features which unite the place. Such as parapets, chimneys, veranda's, the mixture of roofs, the road network, subdivision patterns, pathway connections, consistency of colours and the limited building material palette;

e. Seek to foster a balance between historic character and sensitive contemporary development;

f. Promote the concept of adaptive reuse as a major conservation tool;

g. Reflect an embellishment of public spaces and places in a manner which is sympathetic and does not compete with the period qualities of the township;

h. Retain the rural character of Camden town centre; and

i. The collection of distinctive worker's cottages in View Street, will be conserved with sensitive and appropriate development encouraged.

Controls

1. Views associated with the St John's Church spire must not be compromised.

2. The tree lined "gateway" entrances to the township must be retained and embellished.

3. The rural-urban interface must be sensitively addressed in new development proposals.

4. The strong street grid must be maintained and not compromised by closures and/or permanent malls.

5. Opportunities for enhanced pedestrian linkages must be sensitively promoted

6. Additional development on the fringe of the town should complement and not detract from the viability of the "main street".

7. Original uses of significant buildings should be encouraged and facilitated. Where this is no longer possible, appropriate adaptive re-use opportunities can be used to facilitate the conservation of these buildings.

8. Existing cottage dominated streetscapes must be retained, new development such as extensions/additions should be compatible with the existing streetscape.

9. A two storey height limit must prevail except for significant architectural features incorporated into the design of buildings in significant locations.

10. Large built forms in cottage dominated precincts must be avoided through the use of various roof forms and pitches, wall openings and recesses, materials, recessive colours and landscaping

11. Development of the flood affected fringes of the town must not compromise the prevailing character.

12. In commercial areas where historical evidence exists, awnings and/or veranda's must be provided on the front elevation and must complement existing awnings and verandahs on adjacent buildings.

2.16.5 View Street Workers Cottages

Background

On the entrance to the Camden town, View Street is an important street which demonstrates the early development of residential housing in Camden (Figure 2-5). This street forms part of the Camden Heritage Conservation Area. The original built forms are exhibited as smaller one storey, closely settled cottages, on narrow lots located close to the street, with front verandahs, small front garden areas and picket fences. A regular character is established in the street through consistent setbacks, lot sizes and spacing between cottages. The cottages present simple hipped roof forms, finished in either corrugated metal or tiles. Some buildings provide projecting gables to the front elevation.



Figure 2-5: View Street, Camden

Controls

1. Any additions or alterations to the original cottages must be of a minor nature and appear subservient to the original sections.

2. Additions must only occur at the rear of the cottage and not be visible from the street.

3. Additions must not extend further than half the width of the original cottage, nor include any roof openings.

4. Open front verandahs must be retained or reinstated to their original form.

5. New development on a site must be approved only where the faithful restoration and conservation of the existing cottage is assured and supported by appropriate heritage management documentation.

6. New development will contribute to the streetscape by interpreting features of the prevailing character, including roof pitch and form, materials, bulk and scale, fencing styles, and front and side setbacks.

7. Building height for front building must not exceed one storey, and rear building must not exceed two storeys.

8. Fencing height for the front fence must not exceed 1.0m; rear fence must not exceed 1.8m and side fence must be 1.0m grading to 1.8m at the front building alignment.

9. The area of private open space per residential unit (located behind the primary building line) must have a minimum area of 25m^2 (with a minimum dimension of 5m).

10. Car parking for residential development must be provided at a minimum rate of 1 space for each 1 bedroom unit and 2 spaces for all other units.

11. Car parking for commercial development must be provided at a minimum rate of 2 spaces for each unit.

12. All car parking is to be provided behind the front building line.

13. Basement car parking is encouraged provided the visual impact of the entrance to the basement car park is minimised.
14. Basement car parks on the high side of the street must drain by gravity to the street. For properties on the lower side of the street, drainage must be provided to an inter-allotment drainage easement.
15. All other general heritage provisions must be complied with.

2.16.6 Struggletown Heritage Conservation Area, Narellan

Background

This subsection sets out the objectives and controls specific to development within the Struggletown Heritage Conservation Area. It must be read in conjunction with the general heritage provisions.

The Struggletown Heritage Conservation Area consists of remnants of original cottages along Sharman Close (Figure 2-6). This street is prominently located at the junction of Camden Valley Way and The Northern Road. It contains early examples of housing and is one of the last remaining intact groups within Narellan.

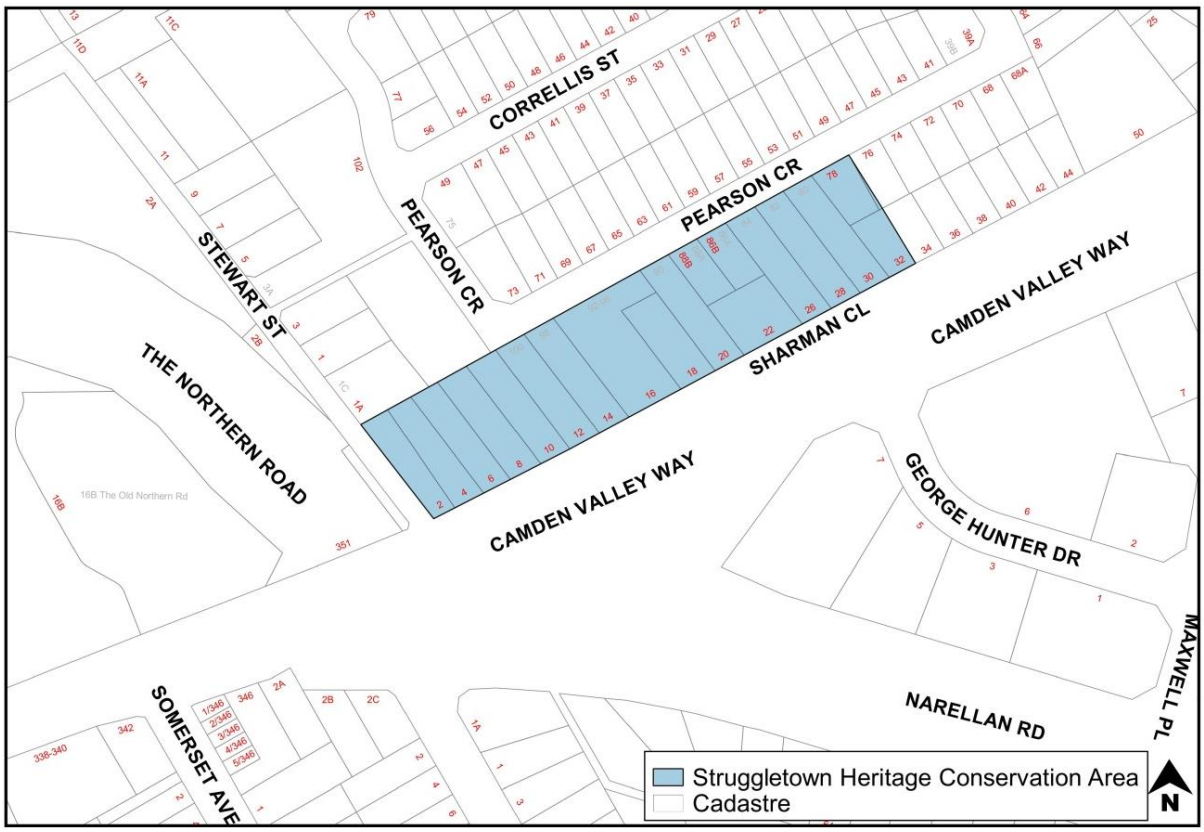


Figure 2-6: Struggletown Heritage Conservation Area, Narellan

Objectives

a. Retain significant fabric and promote evidence of the historic development of the area and enable interpretation;

b. Promote tourist /commercial uses, especially small boutiques that generate limited parking requirements such as art galleries, cafes, boutique retail;

c. Retain the cohesive character particularly evident in the small scale of development;

d. Retain distinctive features which unite the place, such as parapets, chimneys, verandahs, the mixture of roofs, subdivision patterns, consistency of colours and limited building material palette;

e. Seek to foster a balance between historic character and sensitive contemporary infill development;

f. Promote the adaptive reuse as a major conservation tool; and

g. Conserve original significant fabric of early period housing and replace inappropriate additions/development with more sympathetic development and compatible uses.

Controls

1. Original uses of significant buildings should be encouraged and facilitated. Where this is no longer possible, compatible adaptive re-use opportunities should be explored to facilitate the conservation of these buildings.

2. Existing cottage dominated streetscapes must be retained and complemented with compatible extensions/additions and infill developments.

3. Large built forms in cottage dominated precincts must be avoided. New built forms are to be sympathetic in terms of scale, form, fenestration and siting. Architectural detail materials, recessive colours and landscaping can be used to reduce impacts.

4. All other general heritage provisions for design, siting, verandahs, colours, signs, demolition etc must be complied with.

2.16.7 St Thomas Chapel, Narellan – View Corridors

Background

This subsection sets out objectives and controls specific to development within and in the vicinity of St Thomas Chapel, the School Church, cemetery and Narellan Hotel. These are some of the historic buildings of the original Narellan Township. The School Church is a significant rare example of a rural colonial Church. The cemetery is one of the earliest in the district. The dominance of St Thomas Chapel and the School Church on a hill surrounded by open space is significant. The views between all buildings are important and are illustrated in Figure 2-7. This subsection must also be read in conjunction with the general heritage provisions.

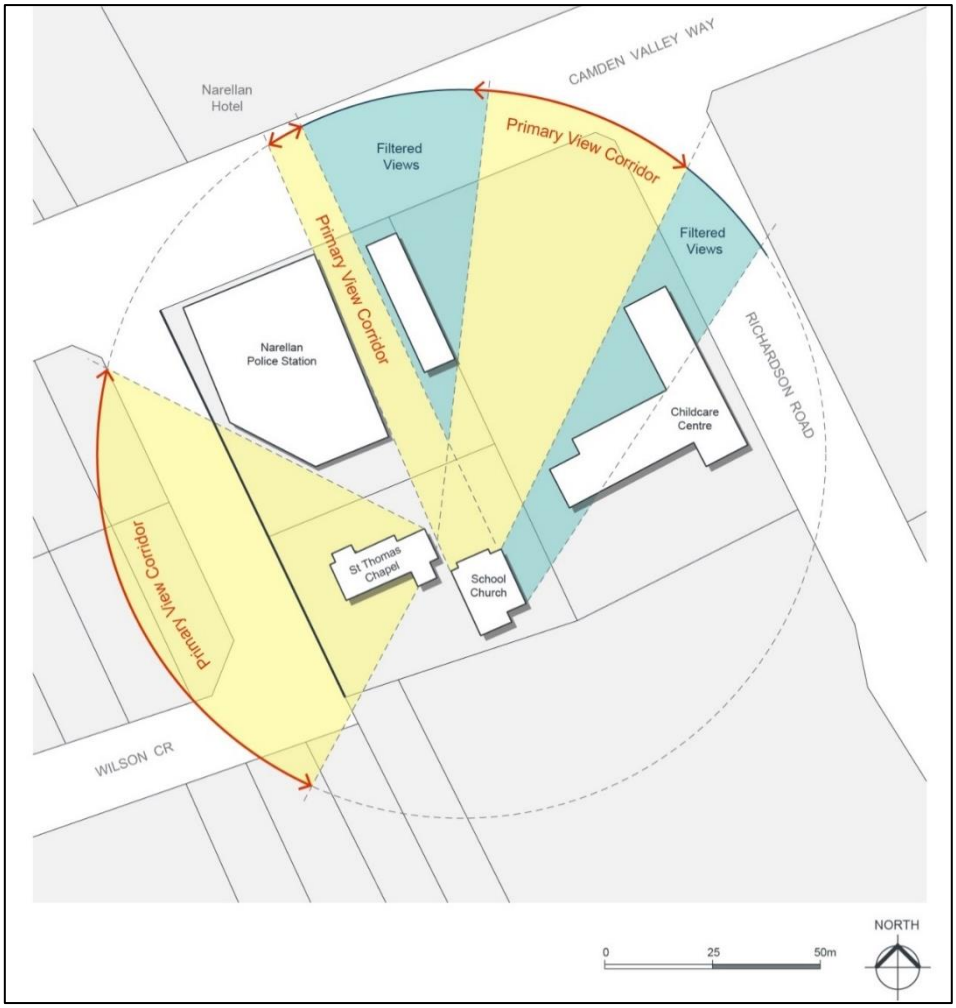


Figure 2-7: St Thomas Chapel, Narellan – View Corridors

Objective

a. The buildings, surrounding open space and the significant view corridors between St Thomas Chapel, the School Church, Narellan Hotel, cemetery and Camden Valley Way, must be retained.

Controls

1. St Thomas Chapel, the School Church, Narellan Hotel, the cemetery and associated significant elements, including the open space and the semi-rural setting must be retained and conserved as outlined in 'St Thomas' Anglican Church and School Church, Narellan – Conservation Plan by Paul Davies Pty Ltd (CMP).

2. No building, structures, signage, trees or shrubs are permitted within the primary view corridors identified in Figure 2-7.

3. No development of the ovals/open space fronting Camden Valley Way is permitted. These ovals/open space are located north of the child care centre and school and are within the Narellan Public School (on the east and western corner Richardson Road). These areas should be retained as open space and a view corridor.

4. New development within the filtered view corridors or within the vicinity of the site (as identified on Figure 2-7); must be in accordance with the relevant provisions of the "Macarthur Anglican School Site – Site Analysis (Heritage) and Proposed Development Guidelines" by Design 5 Architects Pty Ltd, draft, dated 2 April 2003 and the CMP.

5. New development must be lower than and/or not dominate St Thomas Chapel, the School Church or the cemetery.

6. The cemetery must continue to be used as a cemetery and must retain its semi-rural character and heritage significance in accordance with the CMP.

7. Any development of the Hope School site must ensure the physical reconnection of the cemetery with the Church buildings via the Hope School site. This may be achieved by way of pathways, roads or open parklands.

8. All other relevant general heritage provisions must be complied with.

2.16.8 Cross References

The following Schedules also contain Heritage Objectives and Controls specific to these areas.

i. Schedule 1 – Elderslie

ii. Schedule 5 – Mater Dei

iii. Schedule 6 – Camden Lakeside

iv. Schedule 7 – El Caballo Blanco and Gledswood

v. Schedule 10 – Yamba

Note: The item name is not an indication of what is significance on the site. This will be determined by further heritage investigation.

2.16.9 Culturally Significant Places

Background

This section is applicable to all Culturally Significant Places listed in Table 2-2, 2-3, 2-4 Figures 2-8 and 2-9 or in the vicinity of these places as described in Table 2-1. In addition, where applicable to the site, all other sections must be considered.

Objectives

a. Conserve, protect, enhance and interpret Camden's unique Cultural Landscapes;

b. Promote the importance of broader Cultural landscapes and an awareness of the impact that individual developments can have on these; and

c. Promote view sharing of the Cultural Landscapes where appropriate.

Controls

1. A Heritage Impact Statement is required for any development identified as a Culturally Significant Place; Built Environment, Cultural Landscape or Archaeological Sites, as identified in Table 2-2, 2-3 and 2-4 and / or shown in Figures 2-8 and 2-9.

2. Development should optimise the preservation and interpretation of the identified Culturally Significant Places as listed in Table 2-2, 2-3 and 2-4 and shown in Figures 2-8 and 2-9.

3. Curtilages for heritage items established in Conservation Management Plans must be preserved.

4. Avenue plantings and building alignments must reinforce view corridors where appropriate.

Note: The item name is not an indication of what is significant on the site. This will be determined by further heritage investigation.

Table 2-2: Culturally Significant Place – Built Environment

Suburb	Item Name (see note above)	Address	Property Description
Bickley Vale	House "Boorabee"	35 Burragorang Road	Lot 391 DP 136254
Camden	House	13 Alpha Road	Lot 5 DP 6261
Camden	House	41 Alpha Road	Lot 19 DP 6261
Camden	House	14 Barsden Street	Lot 14 SP 42398

Suburb	Item Name (see note above)	Address	Property Description
Camden	Houses	18 Broughton Street	Lot 13 DP 343009
Camden	House	6-10 Elizabeth Street	Lot 100 DP 1007469
Camden	Former Picture Theatre	39-41 Elizabeth Street	Lots 8 & 9 DP 13105
Camden	House	42 Elizabeth Street	Lot B DP 378788
Camden	House	44 Elizabeth Street	Lot 1 DP 707531
Camden	House “Chellaston”	38 Menangle Road	Lot 1 DP 202352
Camden	House “Craig-y-nos”	45 Menangle Road	Lot B DP 319830
Camden	House “Coonac”	47 Menangle Road	Lot 1 DP 946375
Camden	House “Weetalabah”	57 Menangle Road	Lot 1 DP 970145
Camden	House	59 Menangle Road	Lot 1 DP 530480
Camden	Swimming Pool	43 Mitchell Street	Lot 1 DP 231794
Camden	House	24, 26 & 28 Murray Street	Lot 6 DP 37602 Lot B DP 152812

Suburb	Item Name (see note above)	Address	Property Description
			Lot A DP 152812
Camden	House “Mount Mellick”	1 Park Street	Lot 2 DP 1122806
Camden	House “Cooinda”	3 Park Street	Lot 1 DP 1122806
Camden	House “Karoola”	18 Park Street	Lot 1 DP 928268
Camden	Camden Bowling and Recreation Club	10, 10A and 10B Cawdor Road	Lot 1 DP 1170259 Lot 1 DP 1112588 and Lot 1 DP 668712
Cobbitty	House	95 Coates Park Road	Lot 22 DP 730360
Elderslie	House	64 Harrington Street	Lot 8 DP 1105408
Elderslie	Residence	175A Lodges Road	Lot 10 DP 1008863
Elderslie	Residence and associated structures	175B Lodges Road	Lot 100 DP 1018456
Elderslie	House	46 Macarthur Road	Lot 1 DP 112789
Elderslie	House	34 River Road	Lot B DP 360735
Elderslie	House	71 Springs Road	Lot 1 DP 1043066

Suburb	Item Name (see note above)	Address	Property Description
Elderslie	House and associated structures "Camden Acres House"	6 McLeod Place (formerly 13 Whyte Place)	Lot 161 DP 1087243
Ellis Lane	House	83 Ellis Lane	Lot 12 DP 260656
Grasmere	House "Fairview"	95 The Old Oaks Road	Lot 162 DP 819731
Spring Farm	House	2 Ettlesdale Road	Lot 10 DP 38392
Spring Farm	House, garden and curtilage	170 Macarthur Road	Lot 31 DP 635271
Spring Farm	Outbuildings and curtilage associated with 170 Macarthur Road	172 Macarthur Road	Lot 32 DP 635271
Spring Farm	House	214 Macarthur Road	Lot 1 DP 587631

Further Information

The following culturally significant landscapes were identified in the *Camden Scenic and Cultural Landscapes Study February 1998* (Lambcon Associates).

Table 2-3: Culturally Significant Place– Cultural Landscape

Suburb	Item Name	Address	View Description
Bickley Vale, Cawdor	Cultural Landscape	Westbrook Road	Westbrook Road corridor pastoral landscapes and sequential vistas and view corridors
Bringelly and Greendale	Cultural Landscape	Bringelly Road / Greendale Road	Rural Cultural Landscape
Camden	Cultural Landscape	Camden Valley Way (Approaches to Camden)	Includes sections of Camden Valley Way & Argyle Street, the Cowpasture Bridge & avenue of memorial trees along Camden Valley Way
Camden to Leppington	Cultural Landscape	Camden Valley Way	The former "Cowpastures Road" road corridor including trees and sequential vistas and view corridors to historical properties and pastoral landscapes
Camden, Cobbitty and Harrington Grove	Cultural Landscape	Macquarie Grove Road	Macquarie Grove Road corridor pastoral landscapes and sequential vistas and view corridors
Camden South	Cultural Landscape	Remembrance Drive	Remembrance Drive road corridor including trees
Cobbitty	Cultural Landscape	Cobbitty Road	Cobbitty Road cultural landscape
Cobbitty	Cultural Landscape	Cut Hill Road and Coates Park Road	Pastoral landscapes perceived from both roads and sequential vistas and view corridors
Elderslie	Rheinberger's Hill reserve	30 Rheinberger's Circuit	Lot 162 DP 1087243
Elderslie	Cultural Landscape (V1 on Figure 2-8)		Views between: • Studley Park House and Kirkham, Camelot and St John's Church, Camden • views to St John's Church from Rheinburger's Hill and Lodges Road.

Suburb	Item Name	Address	View Description
			• Views from the Camden By-pass to Camden and beyond to the Blue Mountains
Elderslie	Cultural Landscape (V2 on Figure 2-8)		Views to and from Studley Park House from Camden Valley Way, Hilder Street, Kirkham Recreational Park and from within the Elderslie Release Area.
Elderslie	Cultural Landscape (V3 on Figure 2-8)		Views to and from Rheinburger's Hill
Kirkham	Cultural Landscape	Kirkham Lane	Kirkham Lane road corridor, pastoral landscapes and sequential vistas and view corridors
Narellan, Harrington Park, Oran Park	Cultural Landscape	The Northern Road	The Northern Road corridor pastoral landscapes and sequential vistas and view corridors.
Narellan Vale	Cultural Landscape	William Howe Regional Park	Turkey Nest Dam
Spring Farm, Camden, Camden South, and Ellis Lane, Cobbitty	Cultural Landscape	Flood Plains along Nepean River	Camden flood plain pastoral landscape
Spring Farm	Cultural Landscape		• Views from Belgenny Farm to the Spring Farm release area, between St Johns Church and Camden Park Estate and Mount Annan • Views from Macarthur Road to Galvin Cottage, its immediate garden setting, alluvial flats and eastern ridgeline.

Suburb	Item Name	Address	View Description
Spring Farm	Cultural Landscape		• Views from within the Spring Farm Release area to the Blue Mountains and Razorback Range. • Views from William Howe Reserve, across Jacks Gully and the Spring Farm release area. • Views from Camden By-pass across the alluvial flats.
Spring Farm	Cultural Landscape	Vicinity of Macarthur Road	Macarthur Road cultural landscape
Spring Farm	Cultural Landscapes	Vicinity of Nepean River and Camden By-pass	Vineyard and turf farming areas

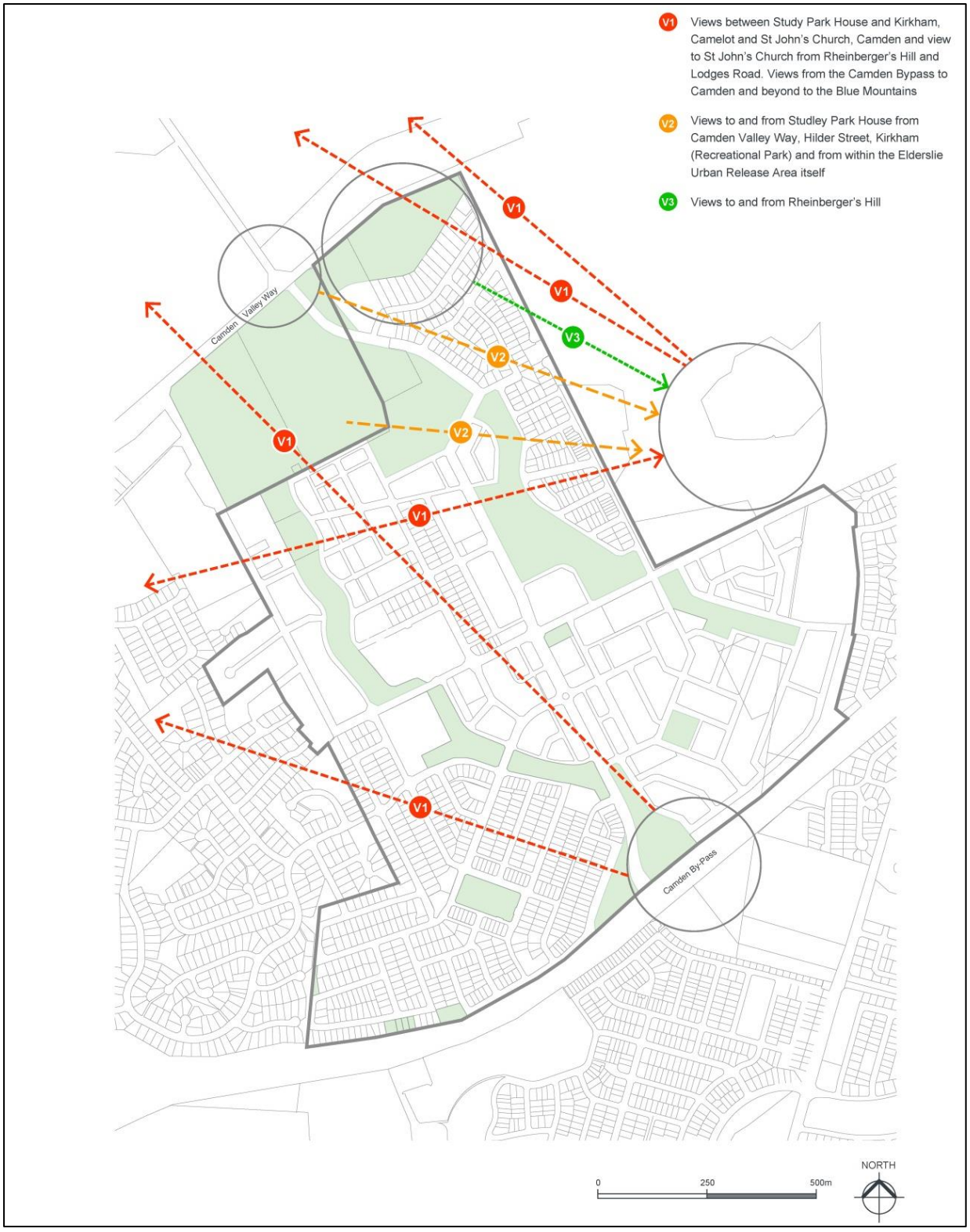


Figure 2-8: Elderslie Cultural and Visual Landscapes

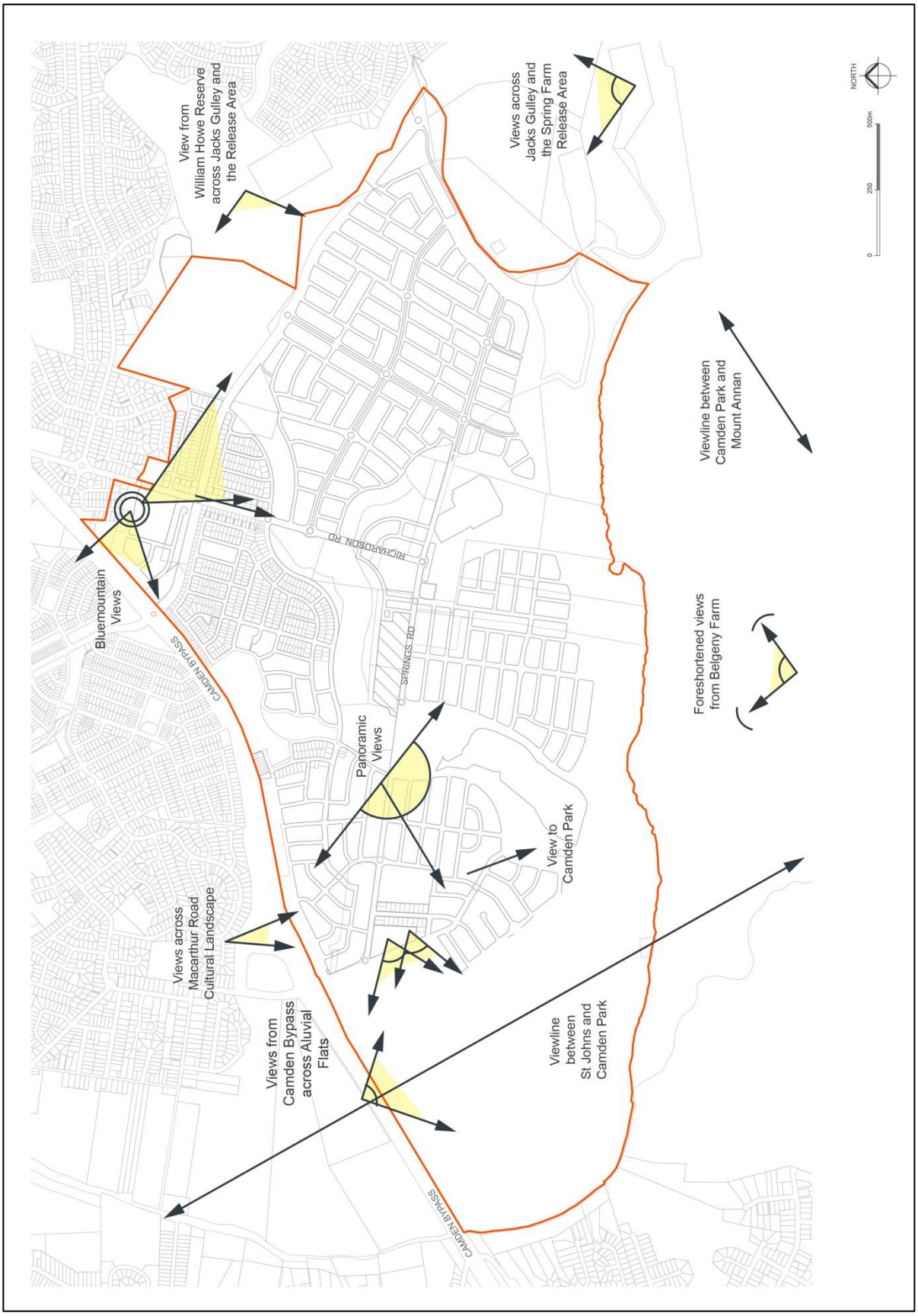


Figure 2-9: Spring Farm Cultural and Visual Landscapes

Table 2-4: Culturally Significant Place - Archaeological Sites

Suburb	Item Name	Address	View Description
Currans Hill, Narellan, Elderslie, Camden	Archaeological sites	Narellan Road and Camden Valley Way	Remnants of the Tramway Stations
Grasmere	Archaeological sites	5 Smalls Road	Underground cistern and archaeological remains of cottage
Kirkham	Archaeological Sites	Kirkham Lane	Former Camden Tramway
Kirkham	Archaeological Site	Kirkham Lane	Former Camelot underground brick water tanks

2.17 Signage

Background

The purpose of this section is to establish Council's specific objectives and development controls for the provisions of signage in the Camden LGA. This section should be read in conjunction with *State Environmental Planning Policy (Industry and Employment*) 2021. For the purposes of this section, signage has the same meaning as defined in *State Environmental Planning Policy (Industry and Employment) 2021*,

- Advertisement;
- Business identification sign; and
- Building identification sign.

Inappropriate signage

Consent will not be granted to the following advertisements:

a. Above awning signs;
b. Roof or sky signs;
c. Vertical or horizontal projection signs;
d. Flashing, electronic, running or moving signs – for example a variable message board sign (other than those signs authorised for traffic management, road traffic and road safety purposes);
e. Illuminated advertising street name signs;
f. Inflatable balloons or other inflatable devices;
g. Banners, bunting, flagging and bill/fly posters (other than those erected by Council);
h. Advertising on shipping containers, parked cars and / or trailers (registered or not registered);
i. Temporary signage erected in or on a public place (other than temporary non-commercial signs); and
j. Feather fan banners (where erected on public property).

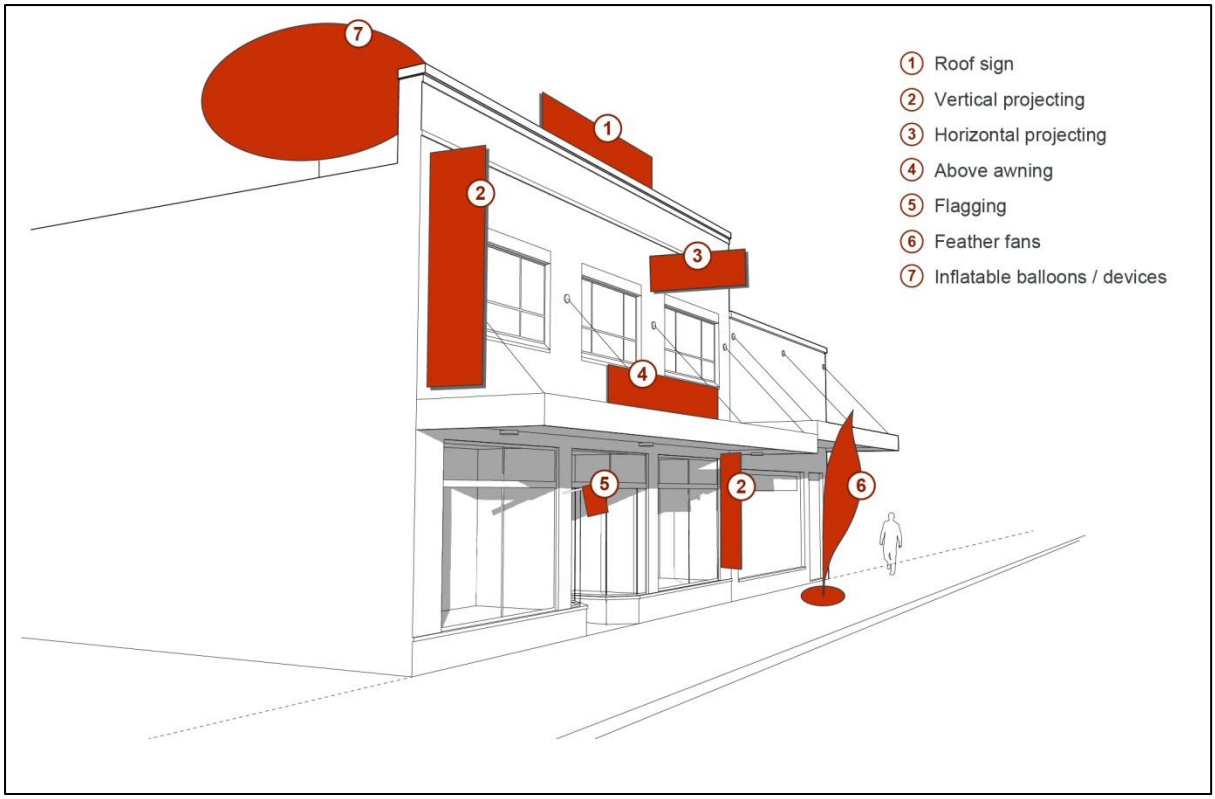


Figure 2-10: Inappropriate. Signage



Figure 2-11: Acceptable Signage

Note: Not every sign above is appropriate on the one building, particularly heritage buildings.

2.17.1 General Requirements for Signage

Objectives

a. Encourage signage of a high quality design and finish that is compatible with the architectural character of building or sites;

b. Limit signage to not adversely impact on the amenity of the streetscapes through visual clutter;

c. To ensure that signage presents as a secondary, subservient feature of the development;

d. Protect the heritage integrity of the Camden LGA by ensuring all signs remain sympathetic to the heritage character of buildings or heritage conservation area; and

e. Ensure signage does not interfere with road traffic and pedestrian safety.

Note: Signage types which are specified in an Environmental Planning Instrument as exempt development do not require development consent. These include State Environmental Policy (Exempt and Complying Development Codes) 2008 and Camden Local Environmental Plan 2010.

The following controls apply to all signage as defined in this section:

1. The location, quantity, type, colour, design and size of all signage must not detract from the amenity and character of the land or building to which it relates.
2. All signage must be consistent with the scale of the building or the property on which it is located.
3. All signage must align with an approved or exempt land use being conducted on the land to which the sign is displayed. Signs or banners approved by Council under *Policy 2.8 Signs and Banners* are exempted.
4. All signage must remain within the property boundary except in the case of a sign attached to an awning over the footpath.

Note: Notwithstanding the controls within this chapter, signage requirements may differ within a heritage item or in a heritage conservation area (refer to 2.16.4 of this DCP). The extent of permitted signage may be limited to minimise impacts upon the heritage item or heritage conservation area.

Signs and Road Safety

1. Signage must not interfere with road and pedestrian safety and must adhere to the following controls:

2. The location of signs must not obscure views of traffic signs or traffic signals or have the potential to cause confusion with traffic signs or traffic signals.
3. The location of signs must not interfere with the view of oncoming vehicles, pedestrians or a road hazard or obstruction which should be visible to drivers or other road users.
4. Signs must not be located at a major intersection, pedestrian crossing or at merging or diverging lanes.
5. Signs must not consist of flashing, electronic, running or moving signs or signage with an intensity of lighting sufficient to impair driver vision or distract driver attention.

2.17.2 Commercial and Mixed Use Zones

Application

The controls within this section apply to signage in the following zones;

- E1 Local Centre
- E3 Productivity Support
- MU1 Mixed Use

Objectives

a. Permit adequate identification and business advertising;

b. Ensure that signs are in keeping with the scale of the building they are on and do not detract from the character of the business or commercial area; and

c. Reduce the visual complexity of the streetscape by encouraging fewer and more effective signage types in this zone.

Controls

1. The total combined signage area on a building elevation must not exceed 20% of that building elevation that is visible from a public place.
2. With the exception of under awning signs, all signs must be located wholly within the property boundaries.
3. All Illumination signage must comply with AS 1158 - Lighting for Roads and Public Spaces and AS 4282 - Control of the Obtrusive Effects of Outdoor Lighting.
4. Window signs must be affixed to the inside of the window. The total combined window signage area must not exceed 20% of the visible window area.
5. A maximum of one pole or pylon sign per street frontage, not exceeding 6m above existing ground level is permitted.
6. In multiple tenancy developments:
    a. Not more than one business identification sign per tenancy must be permitted;

b. Such signage may only display the business name, unit number, address and/or any associated logos or graphics;
c. Signage must not exceed 20% of the visible wall area of the primary elevation of the unit or tenancy;
d. All signage visible from a public place must be of a complementary size, shape and style throughout the development;
e. Directory board signage for the tenancies must be designed using one pole or pylon sign not exceeding 6m above ground level.

2.17.3 Additional Controls for the Narellan Town Centre

Objectives

a. Environment graphics associated with the building and façade treatments are to be clearly distinguished from advertising and should take the form of abstracted architectural elements rather than “lifestyle“ advertising images.

Controls

1. All signage (advertising, business identification, environmental graphics and the like) must be provided in accordance with General Requirements for Signage except where otherwise stated by the following controls.
2. All signage must be integrated into the architectural form and building elements.
3. Signage and environmental graphics should not adversely detract from significant views or vistas to and from heritage items.
4. Signage is permitted for the purpose of business identification for any retail, restaurant, commercial or banking use that has an active street or town square frontage. The provision of signage for each tenancy must comply with the following:

    a. Where a unit or tenancy is visible from a public place, not more than one business identification sign per unit or tenancy is permitted;

    b. Signage must only identify the business name, unit number, address and/or any associated logos or graphics;

    c. Signage must not exceed 20% of the visible wall area of the primary elevation of the unit or tenancy;

    d. All signage visible from a public place must be of a complimentary size, shape and style throughout the development; and

    e. Signage must be provided in accordance with Figure 2-11.

f. Signage must be scaled appropriately in proportion to the building mass.

2.17.4 Signage on Heritage Items or in Heritage Conservation Areas

Objectives

a. Encourage well designed signage that complements and enhances the visual quality and character of heritage items and heritage conservation areas.

b. Encourage new signage that references traditional advertising methods such as painted signage, lettering style, location and style and spot lit illumination.

General Controls

1. Council may require a Heritage Impact Statement to accompany a development application for signage on a heritage item or in a heritage conservation area prior to the granting of development consent.
2. The development application will be required to demonstrate that the proposed signage will complement the historic character of the building or conservation area in terms of colour, material, proportion, positioning and font.
3. The number of signs permitted must not exceed two per elevation that is visible from a public place.
4. New signage should have minimal impact on the character of the heritage item or heritage conservation area.
5. Signage should be appropriately designed and located, to allow the character of the building or conservation area to remain prominent.
6. The design and location of new signage should not dominate or obscure the architectural details of a heritage item. For example, signage should not break the parapet or roofline of a building or buildings, be placed on cast iron balustrades or in front of cast iron verandah frieze work or on top of awnings.

Note: A Heritage Impact Statement should comply with the guidelines prepared by the NSW Heritage Council

Location Controls

1. Signage should be located in areas of the building which have been traditionally used for signage. If such areas do not exist, signage may be considered inappropriate.
2. Opportunities for new signage located on the side of a building are limited and may only be considered where it is surface painted and of a complementary design.
3. Painted signs on windows should be discreet, and not clutter or dominate the shop window.

Design Controls

1. The design of new signs should be in harmony with the character of the heritage item and heritage conservation area.
2. The design should incorporate traditional materials, colours, fonts and size, with a high standard of materials, construction and graphics.
3. Materials for new signage should be sympathetic to the character of the heritage item and heritage conservation area, and preferably be of a painted surface finish.
4. Fixings for new signage should be designed to allow for easy installation and removal, causing minimal damage to building fabric.

Lighting Controls

1. External surface illumination should be discreet or concealed and is the preferred method for signage illumination.
2. External surface illumination fittings should have minimal impact on the external fabric and be consistent with the character of the building.
3. Internally illuminated signage is restricted to under awning signs only.
4. Neon, flashing, pulsing or moving signage is not permitted.

Other Controls

1. Original and early signs should be conserved and not be covered or painted over by new signs.
2. Building name signs on the pediments and parapets of the facades are to be encouraged where appropriate, and historically accurate.
3. Temporary signage such as promotional or ‘special offer’ signage is to complement permanent commercial signage and the character of the heritage item and/or conservation area.
4. Corporate and franchise signage is not appropriate unless it is in harmony with the character of the heritage item or conservation area. Standard corporate signage is usually not considered appropriate in the context of the character of heritage items and heritage conservation areas and may require some modifications to suit the location.

5. Pole signs are preferred over pylon signs. Pole and pylon signs, if appropriate, must not exceed the predominant roof height of the conservation area or heritage item or 6m above ground level, whichever is the lesser.

Note: Reference should be made to the heritage provisions within this chapter.

2.17.5 Residential, Rural and Environmental Zones

Objectives

a. To protect residential areas from the adverse impacts of inappropriate signage; and

b. To ensure signage does not detract from the visual and physical amenity of rural and environmental areas.

Controls

1. Only one business identification sign with a maximum area of 0.7m^2 must be permitted for an approved or exempt land use.
2. Pole or pylon signs must not exceed 2m above ground level.
3. The location, type, colour, design and size must not detract from the amenity and character of the area.
4. All signs must be located wholly within the property boundaries.
5. Illuminated signs are not permitted.

2.17.6 Industrial Zones

Application

The controls within this section apply to signage in zone E4 General Industrial.

Objectives

a. Ensure signs are consistent to the scale of the building they are on and do not detract from the character of the industrial area;

b. Encourage a coordinated approach to advertising for multiple tenancy developments in an industrial zone; and

c. Minimise a proliferation in signage, to prevent visual clutter at entry points to industrial areas.

Controls

1. All illumination must comply with AS 1158 – Lighting for Roads and Public Spaces and AS 4282 – Control of the Obtrusive Effects of Outdoor lighting.
2. Window signs must be affixed to the inside of any window. The total combined window signage must not exceed 20% of the visible window area.
3. In multiple tenancy developments:
    a. The total combined signage area on a building elevation must not exceed 20% of that building elevation that is visible from a public place.
    b. Only one business identification sign is permitted at the entrance to each occupied unit;
    c. Such signage may only display the business name, unit number, address and/or any associated logos or graphics;
    d. All signage visible from a public place must be of a complimentary and consistent size, shape and style throughout the development;
    e. Directory board signage for the tenancies must be designed using one pole or pylon sign not exceeding 6m above ground level.
4. In large stand-alone developments:
    a. The total combined signage area on a building elevation must not exceed 20% of that building elevation;
    b. All signage visible from a public place must be complimentary and consistent size, shape and style throughout the development;
    c. One pole or pylon sign not exceeding 6m above ground level is permitted.

2.17.7 Open Space Zones (Public and Private Recreation)

Objectives

a. Ensure that signs are compatible with the use, scale and character of the land to which they relate; and

b. Allow for business identification signs for approved business within these areas.

Controls

1. Pole or pylon signs must not exceed 2m above existing ground level.

2. All signs must be located wholly within the property boundaries.

3. Illuminated signs are not permitted

2.17.8 Estate Development – Place Entry Sign

Objectives

a. Recognise the need for identification and promotion of new residential and employment estates, during the initial release of lots;

b. Ensure place entry signage is compatible with the character and amenity of the locality; and

c. Allow for estate identification to be located at justified strategic entrance points to residential and employment subdivisions.

Controls

1. Place entry sign(s) must be located at the strategic entrance point of a major subdivision and will only be considered in the context of the locality.

2. The number, type, colour, design and size of place entry sign(s) must not detract from the amenity and character of the land to which it relates.

3. Place entry sign(s) and associated structures must be entirely located within private property and not within the road reserve.

4. Design, materials, construction and detailing must be robust to minimise maintenance and vandalism.

5. A place entry sign(s) must generally comprise of a temporary fence or masonry constructed wall or other materials of solid construction and may incorporate banners, flags, sculptures and the like.

6. Each sign may only include the estate name and suburb name. At a minimum, each sign must include the words ‘developer estate’ to differentiate from the suburb name.

7. Illumination of a place entry sign(s) will generally not be permitted.

2.17.9 Exhibition Homes, Villages & Unit Signs

Signs erected on privately owned land

Objectives

a. Ensure that outdoor advertising is compatible with the amenity of the surrounding locality.

Controls

1. Types of exhibition identification signs must be limited to:

    a. One Pole / Pylon sign having maximum dimensions of;

m. Height: 3.5m x Width: 1.2m per exhibition home.
n. Two Wall signs having a maximum area of 1m² per sign per exhibition home.

2. The location, type, colour and design of advertisements are not to adversely affect;

    a. the amenity of the area,

    b. any adjoining/adjacent dwellings.

    c. existing signage located on adjoining.

3. Signs are to be of a consistent shape, size and presentation throughout the exhibition village.
4. All signs must be located wholly within the property boundaries.
5. Illuminated signage will only be permitted where it is not readily visible from residential properties. In cases where illuminated signage becomes readily visible to surrounding residential development (development that is approved after the illuminated signage), illumination of the signage must cease. All illuminated signage must comply with AS 4282: Control of Obtrusive Effects of Outdoor Lighting.
6. All advertising signs and structures must be removed and the site rectified when the exhibition home / village ceases to operate.

2.17.10 Child Care Centres

Objectives

a. Ensure child care centre signage is compatible with the amenity of the surrounding locality.

Controls

1. Types of business identification signs must generally be limited to:
    a. Flush wall sign
    b. Pole / pylon
2. A maximum of two wall signs to a total combined area of 4m^2 must be permitted.
3. The signs must be limited to the display of the business name, address and any associated logos/graphics, address, phone number, any other information required to be displayed by the Department of Education
4. All signs must be located wholly within the property boundaries and must not impact on the operation and safety of the child care centre.
5. A pole or pylon sign must not exceed 2m above existing ground level.
6. Illuminated signs are not permitted.

2.17.11 Service Stations

Objectives

a. Ensure signage is compatible with the amenity of the surrounding locality.

Controls

1. Types of business identification signs must generally be limited to:
    a. Fascia signs
    b. Top hamper signs
    c. Pole/pylon signs
    d. Wall signs
    e. Entry / exit signs

2. The location, type, colour, design and size must not detract from the amenity and character of the area to which it relates.

3. One pole or pylon sign not exceeding 6m aboveground level is permitted per development.

4. The display of fuel prices must be incorporated into the pole or pylon sign.

5. The location and design of signs (including their illumination) are not to adversely affect the amenity of adjacent development and the character of the locality and not to obstruct any traffic lights or traffic signs.

2.18 Traffic Management and Off-Street Parking

Background

All land use and development generates demand for parking facilities. This chapter outlines Council's requirements for the design and provision of car parking, motorcycle parking, bicycle parking and storage and loading facility requirements for specific developments.

This chapter also provides general requirements for the assessment and management of traffic impacts associated with development.

In the event of any inconsistency between the requirements of this chapter of the DCP and other Parts of this DCP, the other Parts of the DCP will prevail to the extent of the inconsistency.

Objectives

a. Ensure pedestrian and traffic safety;
b. Ensure quality of parking areas in terms of safety, amenity and integration with surrounding areas;
c. Ensure a balance is achieved between the needs of proposed development and the needs of vehicular and pedestrian traffic;
d. Ensure the provision of sufficient and suitably located parking for persons with a disability, cyclists, and motorcyclists within developments;
e. Ensure landscaping and the materials of construction improve the amenity of the parking areas;
f. Provide parking areas which promote ease of access as well as suitable internal circulation patterns;
g. Ensure that adequate provision is made for off-street parking of passenger and service vehicles generated by new developments and redevelopments;
h. Ensure adequate facilities are provided within a development for the loading and unloading of persons and goods; and
i. Provide acceptable alternatives in lieu of on-site parking which:

i. enable Council to responsibly consider development proposals which do not comply with the on-site parking requirements of this DCP;

ii. provide a mechanism to avoid the development of numerous small-scale dispersed car parks;

iii. promote the establishment of strategically located larger parking facilities; and

iv. provide an equitable system of monetary contribution in lieu of on-site parking provision in a Contributions Plan. This will ensure Council is able to responsibly approve development applications that cannot provide all the required parking on-site or where such on-site provision is inappropriate.

2.18.1 Access to Classified Roads and Sub Arterial Roads

1. No direct vehicular site access is permitted to Camden Valley Way or the Camden Bypass. Direct vehicular site access to proposed four (4) lane sub-arterial roads will be considered to neighbourhood centres in exceptional circumstances only, such as for large scale developments and/or the servicing of multiple developments. Direct vehicular site access to two (2) lane sub-arterial roads will be determined on merit having regard to traffic volumes, traffic speeds and the location of cycleways.

2.18.2 Off Street Car parking rates/requirements

Calculation of Spaces

Parking is to be provided for a development in accordance with **Table 2-5– Schedule of Car, Bicycle, and Motorcycle Parking Requirements** and **Table 2-6 Schedule showing Service Vehicle Requirements.**

1. Calculations for the number of parking spaces will primarily be based on the gross floor area of the development, unless otherwise specified.

   Council may consider variations to parking rates in certain circumstances that do not warrant demand and may be supported by a car parking and traffic impact assessment study submitted with a development application. Council will give consideration to other features of the development, such as proposed maximum staffing levels, expected customer levels etc. where warranted.

Note: In the circumstances where the car parking and/or other requirements are not defined by this chapter for a particular land use in the CLEP 2010, a detailed Car Parking and Traffic Impact Assessment Study may be required to be prepared for the proposed development.

2. Where the calculation in respect of the level of parking required results in a fraction of a space, the requirement will be taken to the next highest whole number, unless otherwise specified. The number of off-street car parking spaces required for a development must be calculated in accordance with the methodology demonstrated in the following hypothetical development example:

EXAMPLE:

A combined industrial/warehouse development contains:

Industrial gross floor area = 1,500m² / 70 = 21.43

Warehouse gross floor area = 1,050m² / 300 = 3.5

TOTAL = 24.93

Therefore, this development would require 25 off-street car parking spaces3. Where relevant, applicants should comply with the suggested bicycle parking provision rates for different land use types in the document "Planning Guidelines for Walking and Cycling" (NSW Government 2004).

Parking Credits for Existing Development

1. Council recognises that, in certain cases, land uses may have been lawfully established without any off-street parking or with only a proportion of the parking that would now be required for those uses under this DCP.

2. An estimate of this "historic deficiency" may be obtained by calculating the relevant car parking requirements under this DCP for the existing lawful development on a site and subtracting any existing off-street parking spaces. The resultant figure will then be treated as a "credit" in any parking calculations which may be required for new development on the site (including changes of use).

EXAMPLE:

CURRENT USE – 375m^2 of industrial with 1 parking space provided

Parking requirement = 1/70m^2 = 5.36 spaces

Credit = 5.36 spaces required take away 1 space provided = 4.36 spaces = 5 spaces

PROPOSED USE – 200m^2 of retail and 175m^2 of commercial

Parking requirement = 1/22m^2 for retail = 9.09 spaces

= 1/40m^2 for commercial = 4.37 spaces

Total requirement under DCP = 13.46 spaces = 14 spaces

FINAL REQUIREMENT WITH CREDIT

Proposed parking requirement (14 spaces) – Credit (5 spaces) = 9 spaces

Final Requirement = 9 spaces

3. Credits are not possible where a site is being fully redeveloped. That is the existing building is being removed and another rebuilt, or extensively changed. Gutting of a building with retention of the facade would be assessed as a redevelopment not eligible for parking credits.

4. Credits will not be allowed when there is a significant differing pattern of parking demand between the existing and proposed use.

5. Credits may be disallowed or only partially granted in situations where the local area is particularly sensitive to increases in parking demand on-street or in circumstances where the rates in this chapter of the DCP may be inappropriate;

6. Credits may not be allowed if the building has been vacant for any substantial length of time. When this is the case it effectively removes the justification that the parking demand is currently being catered for on-street.

In circumstances where it is considered that credits may not be strictly appropriate, the logistics and significance of the building or site may be taken into account and a concession for reduced parking granted. In these circumstances, the applicant will need to demonstrate that there is insufficient room in the building to accommodate parking on-site without compromising its heritage or architectural worth, or that the streetscape and overall amenity will be unreasonably damaged.

Monetary Contributions In Lieu Of Off-Street Parking

1. In certain circumstances Council may accept a monetary contribution pursuant to Section 7.11 of the EP&A Act, in lieu of off-street parking being provided as part of the development. Details are set out in the relevant Contributions Plan. The acceptance of a monetary contribution in lieu of off-street parking is not guaranteed and will be at Council's discretion.

2. The amount of contribution will be in accordance to the rate fixed from time to time in the Contributions Plan.

Schedule of Parking Requirements

The parking rates specified in Table 2-5 - Schedule of Car, Bicycle and Motorcycle Parking Requirements are based on a consideration of rates published in the *RTA Guide to Traffic Generating Developments version 2.2, October 2002 (or as updated)* and local requirements particular to Camden.

Table 2-5: Schedule of Car, Bicycle, and Motorcycle Parking Requirements

LAND USE	MINIMUM CAR PARKING REQUIREMENT
Residential	

LAND USE	MINIMUM CAR PARKING REQUIREMENT
Dwelling House	1 car parking space for dwellings with 1 to 2 bedrooms. 2 car parking spaces for dwellings with more than 2 bedrooms. In both instances, at least one car parking space behind the building line.
Dual Occupancy and Semi-Detached Dwellings	1 car parking space for each dwelling with 1 to 2 bedrooms. 2 car parking spaces for each dwelling with more than 2 bedrooms.
Multi Dwelling Housing and Attached Dwellings	1 car parking space per dwelling, plus 0.2 car parking spaces per 2 bedroom dwelling, plus 0.5 car parking spaces per 3 or more bedroom dwelling. 1 visitor car parking space per 5 dwellings.
Residential Flat Buildings	1 car parking space per unit, plus 0.2 car parking spaces per 2 bedroom unit, plus 0.5 car parking spaces per 3 or more bedroom unit. 1 visitor car parking space per 5 units. 1 bicycle space per 3 units.
Hostels, Permanent Group Homes and Transitional Group Homes (excluding Seniors Housing)	1 car parking space per full time equivalent staff member. Parking rate for residents to be assessed on the merits of the application.
Boarding House	As per the State Environmental Planning Policy (Housing) 2021
Home Business, Home Industry, Home Occupation, and Home Occupation (Sex Services)	As per Dwelling House, plus 1 car parking space per staff member other than permanent residents. Note: Additional car parking spaces may be required for visitors depending on the nature of the business.
Affordable Housing	Refer to State Environmental Planning Policy (Housing) 2021
Seniors Housing	

LAND USE	MINIMUM CAR PARKING REQUIREMENT
Residential Care Facility, Hostel, Self-Contained Dwelling	Refer to State Environmental Planning Policy (Housing) 2021
Non-Residential Housing	
Exhibition Home / Village	2 visitor car parking spaces per exhibition home to be provided in a separate car park. Where it can be demonstrated that the use of on-street parking within the village for visitors will not adversely affect traffic flows and the operation of the display village, then the on-street parking may be treated as a credit against the overall requirement for a separate car park. A detailed assessment identifying all on street parking spaces proposed to allocate to visitors will be required to obtain this concession. Exhibition homes are to be designed to ensure they will provide the required amount of off-street car parking for when they are converted into dwelling houses.
Health Consulting Rooms	3 car parking spaces per consulting room, and 1 car parking space per 2 employees. A reduction in the parking requirement will be considered if it can be shown that not all consulting rooms will be in concurrent operation and/or if convenient on-street parking is available, providing that the use of such parking does not adversely affect the amenity of the immediate area.
Casual Accommodation	
Hotel or Motel Accommodation / Tourist and Visitor Accommodation / Serviced Apartment	1 car parking space for each unit, and 1 car parking space per 2 employees, and • 15 car parking spaces per 100m^2 GFA of restaurant / public entertainment / function / reception room / bar, or • 1 car parking space per 3 seats (whichever is the greater) 1 bicycle space per 25 car parking spaces in excess of the first 25 car parking spaces; and

LAND USE	MINIMUM CAR PARKING REQUIREMENT
	1 motorcycle space per 50 car parking spaces in excess of the first 50 car parking spaces. Provision for coaches to pick up and set down may be required.
Backpackers' Accommodation	1 car parking space per 10 beds or 1 car parking space per 5 bedrooms (whichever is the greater), and 1 car parking space per 2 employees. 1 bicycle space per 10 beds. 1 bicycle space per 25 car parking spaces in excess of the first 25 car parking spaces; and 1 motorcycle space per 50 car parking spaces in excess of the first 50 car parking spaces.
Bed & Breakfast Accommodation	1 car parking space for each bedroom, and 1 car parking space for the permanent residents of the dwelling.
Farm Stay Accommodation	1 car parking space for each dwelling.
Tourist	
Caravan Park	1 car parking space per van/mobile home/campsite, and 1 car parking space per 2 employees, and 1 visitor car parking space per 10 sites.
Office and Commercial	
Office Premises and Business Premises	1 car parking space per 40m^2 of GFA. 1 bicycle space per 25 car parking spaces in excess of the first 25 car parking spaces; and 1 motorcycle space per 50 car parking spaces in excess of the first 50 car parking spaces.
Public Administration Buildings and Community Facilities	Assessment to be based on merit taking into consideration the proposed uses and equivalent rates for similar uses as prescribed in this DCP. 1 bicycle space per 25 car parking spaces in excess of the first 25 car parking spaces; and

LAND USE	MINIMUM CAR PARKING REQUIREMENT
	1 motorcycle space per 50 car parking spaces in excess of the first 50 car parking spaces.
Mortuary/Funeral chapels / Funeral homes	1 car parking space per 4 seats and 1 car parking space per funeral service area
Emergency Services Organisation / Emergency Services facility	Assessment to be based on merit taking into consideration the proposed uses and equivalent rates for similar uses as prescribed in this DCP.
Place of Assembly / Place of Public Worship	1 car parking space per 6 seats. *1 bicycle space per 25 car parking spaces in excess of the first 25 car parking spaces; and* *1 motorcycle space per 50 car parking spaces in excess of the first 50 car parking spaces.* A detailed parking assessment may be required identifying impacts of overflow parking on surrounding land uses and the road system.
Industry	
Service Station	4 car parking spaces per service work bay for up to 2 bays and 6 car parking spaces per service bay for each additional bay and 1 car parking space per 22 m^2 GFA of Convenience Store; Plus, if a restaurant is present, the following rates apply for this component in addition: • 7 car parking spaces per 100m^2 GFA ,or • 1 car parking space per 3 seats (whichever is the greater).
Vehicle Body Repair Workshop	4 car parking spaces per service work bay for up to 2 bays and 6 car parking spaces per service bay for each additional bay.
Vehicle Repair Station	4 car parking spaces per service work bay for up to 2 bays and 6 car parking spaces per service bay for each additional bay.
Vehicle Sales or Hire Premises	0.75 car parking spaces per 100m^2 of display site areaand

LAND USE	MINIMUM CAR PARKING REQUIREMENT
	6 car parking spaces per service work bay.
Boat Repair Facility	1 car parking space per work bay and 1 car parking space per 2 employees.
Industry / Light industry	1 car parking space per 70m^2 of GFA. 1 bicycle space per 25 car parking spaces in excess of the first 25 car parking spaces; and 1 motorcycle space per 50 car parking spaces in excess of the first 50 car parking spaces. The parking provision rate is increased when: - Retailing is permitted on-site. The rate for Industrial retail outlets is applied for this component of the development. - The office space component is in excess of 20% of the floor area. The rate for Office Premises and Business Premises applies for the amount of this floor space in excess of 20% of GFA.
Industrial retail outlet	1 car parking space per 30m^2 GFA. 1 bicycle space per 25 car parking spaces in excess of the first 25 car parking spaces; and 1 motorcycle space per 50 car parking spaces in excess of the first 50 car parking spaces.
Warehouse or Distribution Centre / Storage Premises	1 car parking space per 300m^2 GFA. 1 bicycle space per 25 car parking spaces in excess of the first 25 car parking spaces; and 1 motorcycle space per 50 car parking spaces in excess of the first 50 car parking spaces. The parking provision rate is increased when the office space component is in excess of 20% of the floor area. The rate for Office Premises and Business Premises applies for the amount of this floor space in excess of 20% of GFA.

LAND USE	MINIMUM CAR PARKING REQUIREMENT
Retail	
Shopping Centres	Assessment to be based on merit taking into consideration the proposed mix of uses within the shopping centre. The following formula determines the minimum rate to be provided: Peak Parking Demand (per 1,000m^2) = 24 A(S) + 40 A(F) + 42 A(SM) + 45 A(SS) + 9 A(OM) where: • A(S): Slow Trade GLFA, includes major Department stores such as David Jones and Myer, furniture, electrical and utility goods stores. • A(F): Faster Trade GLFA, includes discount department stores such as K-Mart, Big W, and Target. • A(SM): Supermarket GLFA, includes stores such as Franklins and large fruit markets. • A(SS): Speciality Shops and Secondary retail GLFA, includes speciality shops and take-away stores such as McDonalds. These stores are grouped since they tend not be primary attractors to the centre. • A(OM): Offices, medical GLFA. It is recognised that a shopping centre may require more parking than the standard in certain circumstances and less in other circumstances. An application for a shopping centre should include a traffic and parking study identifying this parking requirement. Comparisons with similar sized shopping centre developments will be taken into consideration if the minimum requirement specified by Council is considered inappropriate. 1 bicycle space per 25 car parking spaces in excess of the first 25 car parking spaces; and 1 motorcycle space per 50 car parking spaces in excess of the first 50 car parking spaces.

LAND USE	MINIMUM CAR PARKING REQUIREMENT
Retail Premises / Shop / Kiosk	200m^2 or greater - 1 car parking space per 22m^2 GFA. less than 200m^2 – 1 car parking space per 30m^2 GFA. 1 bicycle space per 25 car parking spaces in excess of the first 25 car parking spaces; and 1 motorcycle space per 50 car parking spaces in excess of the first 50 car parking spaces.
Neighbourhood Shop	1 car parking space per 30m^2 GFA.
Shop top housing	Shops 200m^2 or greater – 1 car parking space per 22m^2 GFA Shops less than 200m^2 - 1 car parking space per 30m^2 GFA. Residential rates apply to the housing component.
Specialised retail premises	1 car parking space per 50m^2 GFA. *1 bicycle space per 25 car parking spaces in excess of the first 25 car parking spaces; and* *1 motorcycle space per 50 car parking spaces in excess of the first 50 car parking spaces.* Comparisons with similar developments will be taken into consideration if this minimum requirement is considered inappropriate for a particular development.
Landscape and garden suppliers	15 car parking spaces or, 0.5 car parking spaces per 100m^2 of site area (whichever is the greater). *1 bicycle space per 25 car parking spaces in excess of the first 25 car parking spaces; and* *1 motorcycle space per 50 car parking spaces in excess of the first 50 car parking spaces.*
Market	2.5 car parking spaces per stall for customers. *1 bicycle space per 25 car parking spaces in excess of the first 25 car parking spaces; and* *1 motorcycle space per 50 car parking spaces in excess of the first 50 car parking spaces.*

LAND USE	MINIMUM CAR PARKING REQUIREMENT
	Parking for stallholders is to be provided separately. The amount of stallholder parking required is to be assessed as part of the Development Application.
Take away food and drink premises	Developments with no on-site seating: 12 car parking spaces per 100m^2 GFA. Developments with on-site seating: 12 car parking spaces per 100m^2 GFA or greater of 1 car parking space per 5 seats (internal and external) or 1 car parking space per 2 seats (internal). Developments with on-site seating and drive through facilities: The greater of**:** 1 car parking space per 2 seats (internal), or 1 car parking space per 3 seats (internal and external) Plus queuing area for 5 to 12 cars. Developments must also accommodate: 1 bicycle space per 25 car parking spaces in excess of the first 25 car parking spaces; and 1 motorcycle space per 50 car parking spaces in excess of the first 50 car parking spaces
Restaurants and Cafés	Where located within a business or industrial zone: 1 car parking space per 30m^2 of GFA All other zones: 15 spaces per 100m^2 GFA; or 1 space per 3 seats (whichever is greater)
Roadside stall	Minimum of 4 car parking spaces.

LAND USE	MINIMUM CAR PARKING REQUIREMENT
Education	
Educational Establishments	Schools: 1 car parking space per full time equivalent staff member, plus 1 car parking space per 100 students, plus 1 car parking space per 5 students in Year 12 where appropriate. On street car parking cannot be considered as a parking. Adequate space is also required for delivery vehicles, a drop off / pick up area and buses as appropriate. Tertiary Institutions: 1 car parking space per 5 seats or 1 space per 10m^2 GFA, whichever is the greater. Developments must also accommodate: 1 bicycle space per 25 car parking spaces in excess of the first 25 car parking spaces; and 1 motorcycle space per 50 car parking spaces in excess of the first 50 car parking spaces
Information and Education Facility	Comparisons should be drawn with similar developments.
Child Care Centre	1 car parking space per 4 children. 1 of the car parking spaces must be designed for people with a disability.
Home-Based Child Care	Residential rates apply plus adequate provision for parent pickup and drop off.
Recreation Facility	
Cinemas	1 car parking space per 5 seats
Entertainment Facility	Car parking will be determined on the characteristics of the facility. A submission based on parking arrangements for similar facilities may be required.
Function Centre	Single room function centre:

LAND USE	MINIMUM CAR PARKING REQUIREMENT
	15 car parking spaces per 100m^2 GFA room; or 1 car parking space per 3 seats (whichever is greater). Developments must also accommodate: 1 bicycle space per 25 car parking spaces in excess of the first 25 car parking spaces; and 1 motorcycle space per 50 car parking spaces in excess of the first 50 car parking spaces For larger function centres a separate parking study will be required.
Recreation facility (indoor or outdoor)	Squash / Tennis Courts: 3 car parking spaces per court Bowling Alley: 3 car parking spaces per alley Gymnasiums: 7.5 spaces per 100m^2 GFA Local Soccer, Football and Similar Sporting Fields: 50 car parking spaces per field. Trampoline Centres: 0.37 car parking space per participant Other Recreation Uses Council may require a Car Parking and Traffic Impact Assessment Study for recreation uses other than those listed above. Developments must also accommodate: 1 bicycle space per 25 car parking spaces in excess of the first 25 car parking spaces; and 1 motorcycle space per 50 car parking spaces in excess of the first 50 car parking spaces.

LAND USE	MINIMUM CAR PARKING REQUIREMENT
Recreation facility (major)	Assessment to be based on merit taking into consideration the proposed uses and equivalent rates for similar uses as prescribed in this DCP.
Amusement Centre	200m^2 or greater - 1 car parking space per 22m^2 GFA less than 200m^2 – 1 car parking space per 30m^2 GFA. One bicycle space/rail for every 5 machines.
Health Care	
Health Service Facility / Medical Centre	4 car parking spaces per 100m^2 GFA.
Hospital / Veterinary hospital	Assessment to be based on merit taking into consideration the proposed uses and equivalent rates for similar uses as prescribed in this DCP.
Registered Premises	
Pub / Registered club / Restricted Premises	A detailed car parking submission is required. Provision for coaches to pick up and set down may also be required for large establishments. 1 car parking space per 2m^2 GFA of public bar area and 1 car parking space per 5m^2 GFA of lounge, beer garden, auditorium, billiard room, restaurant and 25 car parking spaces per 100m^2 of remaining public floor area. Developments must also accommodate: 1 bicycle space per 25 car parking spaces in excess of the first 25 car parking spaces; and 1 motorcycle space per 50 car parking spaces in excess of the first 50 car parking spaces.
Restricted Premises	200m^2 or greater - 1 car parking space per 22m^2 GFA less than 200m^2 – 1 car parking space per 30m^2 GFA.
Sex service premises	1 car parking space per room where sex services are provided and

LAND USE	MINIMUM CAR PARKING REQUIREMENT
	1 car parking space per two employees working at any one time on the premises. At least 1 of the car parking spaces is to be suitable for a driver with a disability.

Assessment of the following uses as defined in CLEP 2010 are to be assessed on merit taking into consideration the proposed uses, staffing, servicing requirements and local requirements:

- Agricultural Produce Industry
- Animal Boarding or Training Establishment
- Freight transport facility
- Hazardous storage establishment
- Liquid fuel depot
- Livestock processing industry
- Offensive storage establishment
- Research station
- Resource recovery facility
- Rural industry
- Stock and sale yard
- Transport depot
- Truck depot
- Turf farming
- Waste disposal facility
- Waste management facility
- Waste or resource management facility
- Waste or resource transfer station
- Water recycling facility
- Water treatment facility

Adoption of relevant standards and guidelines

For the purposes of this chapter of the DCP, the provision of the following standards and guidelines must be complied with:

- AS 2890.1 Part 1: Parking Facilities: Off-street Car Parking;
- AS 2890.2 Part 2: Parking Facilities: Off-street Commercial Vehicle Facilities;
- AS 2890.3 Part 3: Bicycle Parking Facilities;
- AS 2890.5 Part 5: On-street parking; and
- AS 2890.6 Part 6: Disabled parking.
- AUSTROADS *Guide* to Traffic Management.
- Building Code of Australia (BCA)

The following documents may also be used as best practice guidelines where specific

development controls are not contained in this DCP.

- RTA "*Guide to Traffic Generating Developments version 2.2, October 2002*".
- AUSTROADS *"Guide to Road Design"*.
- Planning Guideline for Walking and Cycling. 2004. NSW Government.
- Cycling Aspects of Austroads Guides. June 2017.

Note: Where the above mentioned standards and guidelines are superseded by updated versions, the version current at the date of lodgement of the Development Application must apply to the development.

Traffic Impact Assessment

A Car Parking / Traffic Impact Assessment Study must be prepared by a suitably qualified and experienced traffic engineering consultant. The Car Parking / Traffic Impact Study must be submitted in support of the following Development Applications:

a. All Development Applications required to be referred to the Department of Transport (or equivalent) under Schedule 3 of *State Environmental Planning Policy (Transport and Infrastructure) 2021*; and

b. Other Development Applications where, in the opinion of Council, the development may cause a potential significant adverse traffic impact upon the surrounding road network.

The Car Parking / Traffic Impact Assessment Study must address (but is not necessarily limited to) the following matters / aspects:

a. Assessment of the proposed location and number of car parking spaces within the proposed development, including a breakdown of car parking numbers;

b. Full details of the proposed location of any loading dock / servicing areas and waste storage and collection areas;

c. Assessment of the performance of the existing road network / traffic environment, including the existing level of service of key intersections in the locality;

d. Assessment of the anticipated traffic generation from the development;

e. Cumulative impact assessment upon traffic flow movements and traffic safety in the locality, taking into account the traffic generation rates of the development;

f. Assessment of the predicted performance of the surrounding road network and predicted level of service for each key intersection in the locality;

g. Whether road upgrading and/or traffic improvement works are necessary in the locality as a result of the proposed development;

h. Whether public transport (i.e. either on-site and / or in the immediate locality) is necessary to satisfactory cater for public transport demands in relation to the proposed development;

i. Whether the proposed ingress/egress access arrangements of the development are satisfactory taking into account the proposed car parking and loading / servicing facilities within the development and the location of the proposed access points within the surrounding road network and proximity to key intersections in the locality;

j. Whether sight line distance and other safety issues are satisfactory;

k. Whether the construction of new pedestrian facilities or the upgrading of pedestrian areas / footpaths is required as a result of the proposed development; and

l. Other relevant matters based on the locality or the nature of the proposed development.

State Environmental Planning Policy (Transport and Infrastructure) 2021

Under *State Environmental Planning Policy (Transport and Infrastructure) 2021*, Council is required to formally forward a Development Application to the Department of Transport (or equivalent) for certain developments listed in Columns 2 & 3 of Schedule 3 of the policy and to consider any representations made by the Department of Transport.

Service vehicle provisions

o. Council will assess the extent and size of service vehicle parking area to be provided having regard to the nature of a particular development and its likely servicing requirements.

In cases where provision of separate off-street loading/unloading areas may prove difficult Council may consider requests from applicants to allow:

- shared parking and loading areas, with limitations on the hours during which vehicular loading/unloading may take place; or
- creation of kerbside loading zones.

p. Access by a garbage collection vehicle, where necessary, must be provided to development.

LAND USE	**MINIMUM SERVICE VEHICLE REQUIREMENT**
Commercial Premises (Offices and Showrooms)	1 car parking space per 4,000m^2 GFA or part thereof for areas up to 2,000m^2; thereafter 1 car parking space per 8,000m^2 GFA or part thereof (50% of spaces adequate for trucks)
Department Stores	1 car parking space per 1,500m^2 GFA or part thereof for the first 6,000m^2 and 1 car parking space per 3,000m^2 GFA or part thereof thereafter (all spaces adequate for trucks)
Hotels and Motels	1 car parking space per 50 bedrooms or bedroom suites or part thereof for the first 300 bedrooms or bedroom suites or part thereof; and 1 car parking space per 100 bedrooms or bedroom suites thereafter; plus 1 car parking space per 1,000m^2 GFA or part thereof of public area set aside for bar, tavern, lounge and restaurant (50% of spaces adequate for trucks or coaches)
Residential Flat Buildings	Multiple unit developments with long access driveways to provide for access by furniture removal van, garbage collection and emergency vehicles
Road Transport Terminals, Bus Stations and Liquid Fuel Depots and the Like	1 car parking space per car/truck/van/bus at the time of estimated peak parking accumulation
Supermarkets, Shops and Restaurants	1 car parking space per 400m^2 GFA or part thereof for the first 2,000m^2 GFA; and 1 car parking space per 800m^2 GFA or part thereof thereafter (50% of spaces adequate for trucks)

Warehouses, Industrial Including Automotive Industries, Bulky Goods Retail Outlets	1 car parking space for the first 800m^2 GFA or part thereof and thereafter developments will be assessed on merit
Other Uses	At Council's discretion

Table 2-6: Schedule showing Service Vehicle Requirements

Disabled Parking Requirements

Design of off-street parking for people with a disability must comply with AS 2890.6 and the Commonwealth Disability Discrimination Act (1992). The car parking rates for accessible car parking spaces are to comply with the Building Code of Australia except where the requirements are specifically referred to in **Table 2-5**.

A continuous accessible path of travel must be provided between designated car parking spaces for people with a disability and lift lobby or access points servicing the development.

The designated car parking spaces for people with a disability must be appropriately signposted and line marked.

Parking for Motorcycles and Bicycles

The design of the bicycle spaces should be in accordance with AS2890.3. Alternative designs for bicycle racks will be considered.

The design of motorcycle spaces (on and off street) must be in accordance with the on-street design requirements specified in AS2890.5.

Arcades - Consideration in Parking Calculations

This subclause applies to arcades being pedestrian corridors traversing a building, which provide a link between two public places within a development, where their floor space should be incorporated within the overall gross floor space of the development and generate additional car parking requirements at the applicable rates.

Arcades may qualify to be exempt from the car parking calculations where the developer can establish the following:

a. the arcade will provide a practical pedestrian link to parking facilities used by the public.

b. that the arcade will remain open to the general public for an appropriate period daily to serve as an unrestricted functional pedestrian link.

c. the arcade will provide an attractive public area, with seating and landscaped features which do not impede pedestrian flow.

d. the arcade floor space will not be utilised for retail, commercial, or like purpose by tenants of the complex or others.

e. where the developer provides a legally binding undertaking to maintain the arcade and to open the arcade at specified times as agreed upon by the developer/owner and Council or as required in development consent.

2.18.3 Car parking design criteria

Parking for Visitors

1.Visitor parking spaces should be clearly marked and conveniently located to encourage their use by their intended users. Spaces should be freely accessible, preferably in front of the building.

Coaches and Car/Taxi Set-down

1. Taxi, private vehicle and coach drop-off/set-down areas should be provided for larger developments in a convenient off-street location close to pedestrian entrances, with consideration given to the design of the front of the building, safely and interruption to traffic.
2. The use of on-street space for set-down areas may be possible if off-street provision is impractical or detrimental to pedestrian amenity. However, this would be subject to negotiation with Council.

Public Transport

1. Access to public transport services from developments should be maximised.

Garbage Vehicles

1. Garbage storage and collection areas should be conveniently located and designed so as not to cause unacceptable on-street conflicts. Information should be gained from Council regarding specific garbage collection requirements for the site. Refer to *Council's Waste Management Guideline.*

Landscaping and Aesthetics

General Appearance and Design Considerations

1. The design of parking areas should take into account the likely visual impact of these areas in the context of the surrounding development and streetscape. Landscaping is the most effective means of "softening" the appearance of large paved surfaces and multiple rows of vehicles, as well as providing shade for users and assisting with surface water run-off. A landscape plan is required to be prepared by a suitably qualified person and submitted with the development application, showing the proposed layout of each design.

Planting Principles

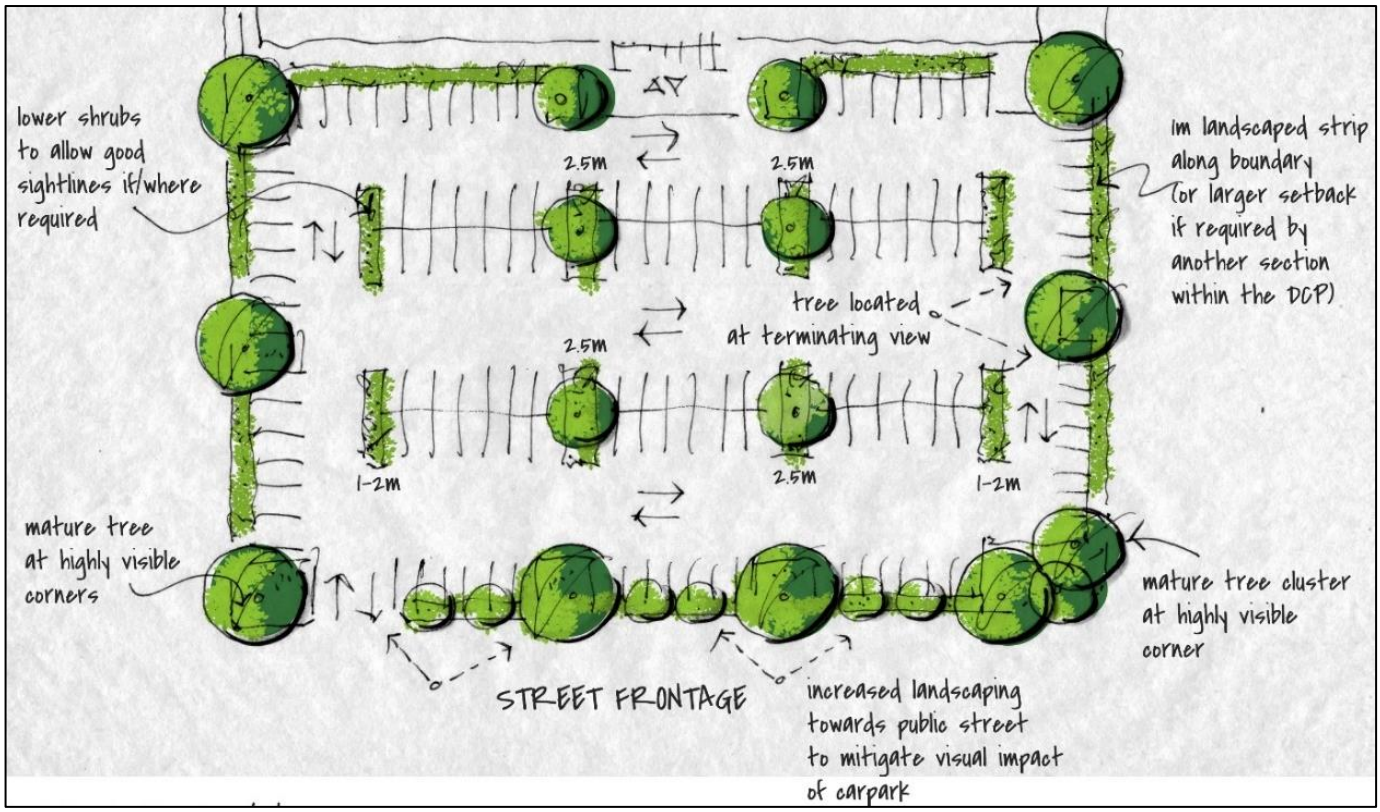
1. The planting of trees and shrubs can improve the appearance of car parks considerably and enhance user amenity through sun control. Species should be selected and located to avoid maintenance problems such as interference with overhead wires, underground conduits, damage to paved areas by root systems, and leaf and branch litter.

2. Trees to avoid for parking areas are those with large surface roots, excessive girth, brittle limbs, fruits which drop and trees which attract large numbers of birds. In most cases landscaping can be integrated into parking layouts without the need for additional area or loss of spaces.

3. Car parks that are highly visible from the public domain must comply with the following requirements:

    - provide a 2.5m wide landscape bay between every 6-8 car parking spaces,
    - provide a minimum 1m landscaping strip at the end of parking aisles, and
    - be landscaped generally in accordance with the Figure 2-12.

Figure 2-12 Design features of car park



4. A minimum 1 metre landscaping strip is to be providing along the boundary (the 1 metre landscaping strip can be included in any front or secondary landscaping requirement e.g. Smeaton Grange).

Planting Preparation

1. Planting areas should be prepared with quality growing media to a minimum depth of 1 metre and have appropriate sub surface drainage. The planted area should be covered with weed free organic mulch to a depth of 100mm.

Landscaping Provision

1. Landscaped areas for car parks must be provided in the form of tree planting, garden beds, mounding, shrubberies, lawns and the like.

2. In multi-storey parking facilities, the use of planter boxes on the external face of the parking structure is encouraged. Likewise, exposed retaining walls may be planted with suitable trailing or climbing species.

3. Planting is also encouraged between parking spaces to maximise shaded areas and to further enhance the appearance of the car park. Trees should, where possible, be planted every four car parking spaces. To ensure greater sight distances, tree species should have thin trunks with high canopies and garden beds should include low shrubs.

Basement Car parking

1. Where basement car parking extends beyond the building envelope, a minimum soil depth of 1.0m is to be provided, measured from the top of the slab and will not be calculated as part of the deep soil zone.

2.19 Landscape Design

Background

This chapter sets out the provisions for landscape design within developments including residential, commercial, industrial and community facilities. Addition information is provided within *Appendix B Landscape Design Principles and Submission Requirements*.

Objectives

a. Ensure that any new development considers and maximises the protection and provision of trees and vegetation in the site planning, design, development, construction and operation of the development;
b. Ensure developments make an equitable contribution to the landscape setting of the locality;
c. Encourage the planting of local indigenous, salt tolerant and low water consumption plants and trees;
d. Provide and protect privacy and amenity;
e. Promote energy efficiency and address urban heat island effect by balancing both solar access and shade;
f. Contribute to the Urban Forest through use of a diversity of species to deliver a variety of ecosystem services;
g. Provide for the infiltration of water to the water table, minimise run-off and assist with management of stormwater volumes and quality; and
h. Manage non-native vegetation in accordance with its cultural heritage and landscape significance.

Controls

1. A landscape plan is to be submitted for all development that, in Council's opinion, will significantly alter the existing and intended landscape character of the land. In general, all development applications other than single dwelling house or minor alterations to an existing building will require the lodgement of a landscape plan.

Note:

For submission requirements refer to Appendix B Landscape Submission Requirements.

Any Landscape plans submitted for developments in Bushfire Prone Land must be prepared in accordance with the Planning for Bushfire Protection Guidelines.

Further Information:

- Council's *Tree and Landscape Species List*
- Camden Open Space Design Manual
- Camden's Spaces and Places Strategy
- Rural Fire Service Planning for Bushfire Protection Guidelines

2.20 Ridgelines and Steep Land

Background

Ridgeline lands are recognised in NSW Government regional and district strategic plans and in Camden Council's planning strategies and studies as having environmental value in terms of scenic amenity, cultural heritage, and biodiversity values that need protecting. Ridgelines and steep land also present environmental hazards such as land instability and bushfire hazard. This section of the DCP aims to protect and enhance the environmental values and manage the environmental hazards associated with ridgelines and steep land in development applications.

This section of the DCP applies to development applications for land subdivision, civil works and new buildings on or adjoining ridgeline land and/or land that has a gradient of 15% or greater. This section of the DCP is separated into two parts - Ridgeline Land controls and Steep Land controls. As part of a DA, ridgeline land is to address both the Ridgeline Land and Steep Land controls. However, where land is not considered a ridgeline, the Steep Land controls are to be addressed.

This section of the DCP does not apply to the following development:

- alterations or minor additions to an existing building;
- development on land that is included in a precinct specific plan for ridgeline land or steep land in a DCP schedule which the consent authority is satisfied has been prepared in a manner consistent with the objectives and controls in this section; or
- development which, in the opinion of the consent authority, is consistent with a previous development on the land (such as a masterplanned subdivision) that has been approved or carried out in a manner consistent with the objectives and controls in this section.

The general controls in this section operate in conjunction with the precinct specific controls in the DCP schedules. In the event of an inconsistency between this section and a precinct specific schedule, the precinct specific schedule is to apply. Where site-specific DCP controls address the above criteria, the site-specific DCP controls will prevail.

Definitions

Ridgeline Land - is defined as elevated lands characterised by its separation from surrounding terrain by steep slide slopes and includes the high points along ridgelines and hilltops and the steeper upper and lower side slopes.

Steep Land – is defined as land which has a gradient of 15% or greater.

Objectives

The objectives of this section of the DCP on planning for ridgelines and steep land are to:

a. Maintain, protect and enhance the environmental values of ridgeline land including:
   - landscape scenic/visual amenity value;
   - biodiversity value of vegetation and habitat including as a biodiversity corridor connection;
   - heritage and cultural values and connection with country value;
   - stability of the ridgeline and side slopes.

b. Maintain the social and economic values of ridgeline land including:
   - social values that encompass the land's contribution to sense of place and identity, orientation and legibility in the landscape, and amenity and liveability in the locality;
   - values of a scenic landscape that encourages business and resident investment and attracts tourism;

c. Manage and mitigate the natural / environmental hazards on ridgelines and steep land including:
   - land instability hazards;
   - stormwater runoff and subsurface water implications for erosion and instability hazards;
   - bushfire hazards;

d. Ensure urban development on ridgeline land responds to the natural environment and its visual amenity and is undertaken in a manner that avoids or mitigates environmental hazards;

e. Ensure the scale, location and height of buildings recedes into the landscape; and

f. Ensure the design of buildings follows the slope of the land to minimise cut and fill.

Controls

Ridgeline Land

Environmental Assessments

1. A Development Application on land to which this section applies is to be accompanied and informed by the following environmental assessment reports:

Table 2-7: Ridgeline land environmental assessments

Assessment	Output
Visual Landscape Assessment (for land that includes the top of a ridgeline)	• Assessment of visual / scenic landscape significance and whether the ridgeline should be retained as scenic landscape.
	• Identification of areas which are to be retained as vegetated or revegetated.
	• Identification of areas to be retained free of visible urban building structures.

Assessment	Output
	• Recommendations for orientation / layout of road and subdivision pattern, building design, and extent of earthworks in urban development area adjacent to ridgeline.
Heritage and Connection with Country Assessment	• Identification of any Aboriginal heritage, cultural and/or connections with country value, and likelihood of the presence of any Aboriginal artefacts. • Identification of any non-Aboriginal heritage values items.
Geotechnical Assessment	• Geotechnical and land stability conditions.
	• Land instability risk profile.
	• Hazardous area of land slip and run out risk in which urban building structures and infrastructure are to be excluded (taking into account any engineering stabilisation measures to be implemented).
	• Engineering and other measures for land stability such as vegetation retention/rehabilitation, surface and subsurface drainage, landforming, landscape surface treatments, and erosion control in construction and operational stages.
Vegetation Management Plan (see below for requirements) **Biodiversity Assessment** (cont.)	• Context of strategic plans in the locality such as Biodiversity Values Land, Cumberland Plain Conservation Plain Strategic Conservation Area.
	• Description and biodiversity value of any existing vegetation, habitat and fauna on the subject land and adjacent land.
	• Identification of areas which are to be retained as vegetated or revegetated.
	• Potential for the subject land to form a part of a vegetation corridor with adjoining land.
	• Rehabilitation and ongoing management of existing vegetation.
	• Restoration of vegetation on areas cleared or occupied by undesirable plant species.
Bushfire Hazard Assessment (for bushfire prone land)	• Bushfire risk of existing and/or restored vegetation.
	• Bushfire protection measures needed for urban development adjacent to ridgelines including asset protection zone, perimeter road/fire trail, and water supply.

2. A Vegetation Management Plan is to be undertaken for ridgeline land on which there is existing native vegetation, and/or which is connected to an area of native vegetation, and/or which is intended to be revegetated for either scenic landscape or biodiversity purposes.

3. An environmental assessment in clause 1 above may be waived if it was prepared previously to inform an approved planning proposal, master plan or subdivision plan applying to the land which is the subject of the Development Application, and if the consent authority is satisfied it is adequate for the Development Application.

Development Controls

1. The planning and design of development on or adjoining ridgeline land is to be consistent with and informed by the abovementioned environmental assessments.

2. All Development Applications for ridgeline land are to identify the following, where relevant:

    - Vegetated Area/s to be retained and rehabilitated for native trees and vegetation under a Vegetation Management Plan in which clearing, urban buildings, infrastructure and engineering works that would adversely affect tree survival are to be excluded (which is to be based on a visual landscape assessment and/or biodiversity assessment);

    - Bushfire Protection measures on any bushfire prone land including asset protection zone/s, perimeter fire trail/s and water supply (which is to be based on a bushfire hazard assessment);

    - Hazardous area/s that are subject to a high risk of land instability and associated runout in which urban development, buildings and infrastructure are excluded (which is to be based on a geotechnical assessment); and

    - Engineering measures to manage hazardous areas of land instability including landforming, surface drainage and subsurface drainage (which are to be based on a geotechnical assessment).

3. Development Applications that include planting of vegetation on ridgeline land are to include a geotechnical assessment, and arborist assessment or landscape architect statement, demonstrating the soil type and depth are adequate for the vegetation survival.

4. Development Applications that include retention of vegetation on ridgeline land and engineering works that disturb the ground or earthworks in close proximity to the vegetation are to include an arborist assessment demonstrating the life expectancy of the vegetation will not be undermined by the works.

5. Development Applications for the subdivision of ridgeline land are to include the following items (in addition to the items in clause 5 above) which are to be based on the abovementioned environmental assessments where relevant to protect and manage ridgeline and steep land:

    - Subdivision and road layout;

    - Building envelopes on each lot;

    - Location of driveway on each lot;

    - Interallotment drainage;

- S.88B covenants on title for the following where relevant:
    - Building envelope;
    - Drainage easements;
    - Vegetation management / maintenance;
    - Bushfire protection measures (eg. APZ and perimeter fire trail) maintenance;
    - Land stability measures including restrictions on carrying out earthworks, and subsurface and surface drainage engineering works maintenance.

6. Development Applications for ridgeline land are to be generally consistent with the schematic drawing of general planning principles for development on ridgeline land in **Figure 2.13** below where relevant.

7. In subdivision, the size and arrangement of allotments is to be sufficient to accommodate the outcomes of environmental assessments mentioned above and be consistent with the general planning principles in **Figure 2.13** below. Development Applications for subdivision plans must demonstrate consistency with the objectives and controls in this section of the DCP for ridgelines and steep lands, notwithstanding any minimum lot size standard applying to the land.

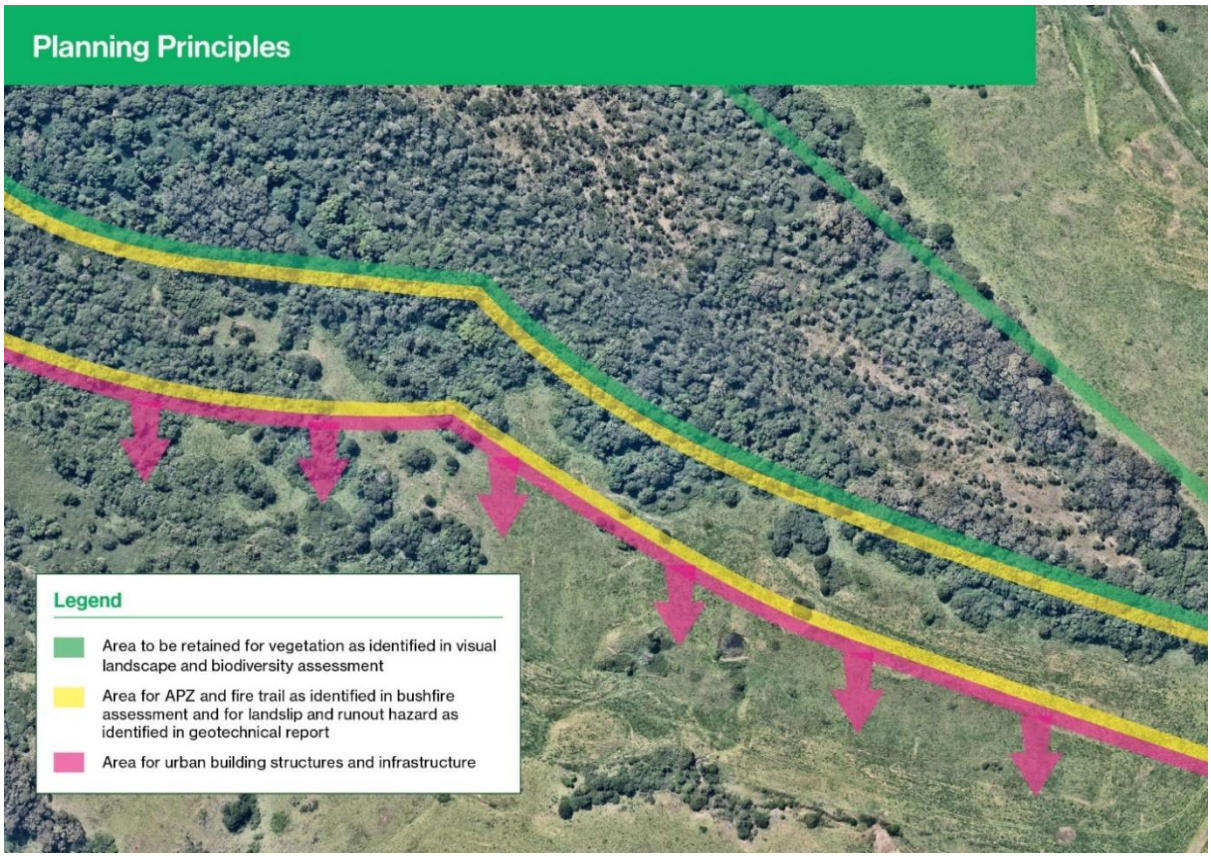


Figure 2-13 Schematic drawing of general planning principles for development of ridgeline land

Steep Land

Environmental Assessments

1. A Development Application on land to which this section applies is to be accompanied and informed by the following environmental assessment reports:

Table 2-8: Steep land environmental assessments

Assessment	Output
Geotechnical Assessment (for land which has a gradient of 15% or greater, and/or which has erodible soils or instability.	• Geotechnical and land stability conditions.
	• Land instability risk profile.
	• Hazardous area of land slip and run out risk in which urban building structures and infrastructure are to be excluded (taking into account any engineering stabilisation measures to be implemented).
	• Engineering and other measures for land stability such as vegetation retention/rehabilitation, surface and subsurface drainage, landforming, landscape surface treatments, and erosion control in construction and operational stages.
Vegetation Management Plan (see below for requirements) **Biodiversity Assessment** (cont.)	• Context of strategic plans in the locality such as Biodiversity Values Land, Cumberland Plain Conservation Plain Strategic Conservation Area.
	• Description and biodiversity value of any existing vegetation, habitat and fauna on the subject land and adjacent land.
	• Identification of areas which are to be retained as vegetated or revegetated.
	• Potential for the subject land to form a part of a vegetation corridor with adjoining land.
	• Rehabilitation and ongoing management of existing vegetation.
	• Restoration of vegetation on areas cleared or occupied by undesirable plant species.
Bushfire Hazard Assessment (for bushfire prone land)	• Bushfire risk of existing and/or restored vegetation.
	• Bushfire protection measures needed for urban development adjacent to ridgelines including asset protection zone, perimeter road/fire trail, and water supply.

2. A Vegetation Management Plan is to be undertaken for steep land on which there is existing native vegetation, and/or which is connected to an area of native vegetation, and/or which is intended to be revegetated for either scenic landscape or biodiversity purposes.

3. An environmental assessment in clause 11 above may be waived if it was prepared previously to inform an approved planning proposal, master plan or subdivision plan applying to the land which is the subject of the Development Application, and if the consent authority is satisfied it is adequate for the Development Application.

Development Controls

1. Development on land having a natural gradient of 15% (1:6.7) or greater must not be approved unless a geotechnical study, including guidelines for structural and engineering works on the land, has been considered by Council.

In subdivision, the size and arrangement of allotments is to be sufficient to accommodate the outcomes of environmental assessments mentioned above and be consistent with the general planning principles in **Figure 2.13** above. Development Applications for subdivision plans must demonstrate consistency with the objectives and controls in this section of the DCP for ridgelines and steep lands, notwithstanding any minimum lot size standard applying to the land.

Additional Controls for residential buildings including outbuildings for both Ridgeline Land and Steep Land

1. Dwellings and ancillary structures must have a roof line that is lower than the ground surface on the top of ridgelines or hilltops.

2. Dwellings and ancillary structures are to be sited so as to appear to be below the height of any ridgeline and its vegetation when viewed from public vantage areas such as major transport corridors, parks, lookout vantage point and public heritage items.

3. Dwellings and ancillary structures must be designed to follow the slope of the land to minimise cut & fill. (Refer also to Section 2.1 for objectives and controls for earthworks.) Split level home and building design is to be used on land which has a gradient of 15% or greater.

4. Roof design of any dwelling and ancillary structure must complement the slope and visual qualities of the land and have an earthy mid-tone and colour that is recessive in the landscape and has low reflectivity.

5. Any roof element including solar panels must be constructed of material with low reflectivity.

6. Driveway design and colour must be visually recessive with the surface constructed of non-reflective materials.

-End of Part-

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